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**U.S. District Court
Southern District of New York (Foley Square)
CIVIL DOCKET FOR CASE #: 1:10-cv-09407-PGG**

Hyde v. The City of New York et al

Date Filed: Dec 17, 2010
Status: Closed
Nature of suit: 440 Civil Rights: Other
Assigned to: Judge Paul G. Gardephe
Cause: 42:1983 Civil Rights Act
Date terminated: Feb 16, 2012
Jurisdiction: Federal Question
Jury demand: Both
Referred to: Magistrate Judge Theodore H. Katz (Settlement)

Parties and Attorneys

Plaintiff

Gary Hyde

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Defendant
John Irizarry

Defendant
John Doe #1
TERMINATED: 08/24/2011

Defendant
John Doe #2
TERMINATED: 08/24/2011

Defendant
John Doe #3
TERMINATED: 08/24/2011

Defendant
John Doe #4
TERMINATED: 08/24/2011

Defendant
Michael Denave

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Defendant
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Defendant
Randy Rose

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Defendant**Constantine Charidemou****Attorneys and Firms**

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Defendant**George Anarella****Attorneys and Firms**

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Defendant**Joseph Milazzo****Attorneys and Firms**

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Docket Entries**Reverse Entries**

Numbers shown are court assigned numbers.

Entry #	Filing Date	Action	Description
<u>1</u>	Dec 17, 2010	<u>View</u>	COMPLAINT against John Irizarry, John Doe #1, John Doe #2, John Doe #3, John Doe #4, The City of New York. (Filing Fee \$ 350.00, Receipt Number 923742) Document filed by Gary Hyde.(rdz) (ama). (Entered: 12/21/2010)
	Dec 17, 2010		SUMMONS ISSUED as to John Irizarry, John Doe #1, John Doe #2, John Doe #3, John Doe #4, The City of New York. (rdz) (Entered: 12/21/2010)
	Dec 17, 2010		Magistrate Judge Theodore H. Katz is so designated. (rdz) (Entered: 12/21/2010)
	Dec 17, 2010		Case Designated ECF. (rdz) (Entered: 12/21/2010)
2	Jan 19, 2011	Request	AFFIDAVIT OF SERVICE. The City of New York served on 12/28/2010, answer due 1/18/2011. Service was accepted by Dmitriy Aronov, Managing Agent. Document filed by Gary Hyde. (Bellin, Eugene) (Entered: 01/19/2011)
3	Jan 19, 2011	Request	AFFIDAVIT OF SERVICE. John Irizarry served on 12/30/2010, answer due 1/20/2011. Service was accepted by Lieutenant Swarm, co-worker. Document filed by Gary Hyde. (Bellin, Eugene) (Entered: 01/19/2011)
4	Jan 19, 2011	Request	NOTICE OF APPEARANCE by Baree Nichole Fett on behalf of The City of New York (Fett, Baree) (Entered: 01/19/2011)
5	Feb 9, 2011	Request	ENDORSED LETTER addressed to Judge Paul G. Gardephe from Baree N. Fett dated 1/19/2011 re: We respectfully request that defendant City's time to answer or

			otherwise respond to the complaint be extended to March 18, 2011. ENDORSEMENT: The application is granted. So ordered. The City of New York answer due 3/18/2011. (Signed by Judge Paul G. Gardephe on 2/8/2011) (rjm) (Entered: 02/09/2011)
6	Apr 20, 2011	Request	ANSWER to Complaint with JURY DEMAND. Document filed by John Irizarry, The City of New York.(Fett, Baree) (Entered: 04/20/2011)
7	May 25, 2011	Request	NOTICE OF INITIAL PRETRIAL CONFERENCE: Initial Conference set for Tuesday, 6/7/2011 at 02:45 PM in Courtroom 6B, 500 Pearl Street, New York, NY 10007 before Judge Paul G. Gardephe. (Signed by Judge Paul G. Gardephe on 5/23/11) (cd) (Entered: 05/26/2011)
8	June 1, 2011	Request	ENDORSED LETTER addressed to Judge Paul G. Gardephe from Baree N. Fett dated 5/26/2011 re: Defendant City requests that the initial conference scheduled for 6/7/2011 at 2:45 pm, be moved to 6/7/2011 at 3:30 pm. ENDORSEMENT: The Application is granted.(Initial Conference set for 6/7/2011 at 03:30 PM before Judge Paul G. Gardephe.) (Signed by Judge Paul G. Gardephe on 6/1/2011) (tro) (Entered: 06/01/2011)
	June 7, 2011		Minute Entry for proceedings held before Judge Paul G. Gardephe: Initial Pretrial Conference held on 6/7/2011, (Status Conference set for 9/7/2011 at 10:15 AM in Courtroom 6B, 500 Pearl Street, New York, NY 10007 before Judge Paul G. Gardephe.). (mr) (Entered: 06/07/2011)
9	June 15, 2011	Request	CIVIL CASE MANAGEMENT PLAN AND SCHEDULING ORDER: The Court adopts the following Civil Case Management Plan and Scheduling Order set herein. The case is to be tried by a jury. Fact Discovery due no later than 9/7/2011. Serve initial requests for production of documents by 6/21/2011. Serve interrogatories by 6/21/2011. Complete depositions of fact witnesses by 8/24/2011. Serve requests to admit no later than 8/31/2011. Parties seeking to make post-discovery depositive motions should submit a letter to the Court in accordance with the Court's Individual Practice Rule 3(A) by 9/21/2011. Status conference scheduled for 9/7/2011 at 10:15 a.m. This ORDER may not be modified or the dates herein extended, except by further Order of this Court for good cause shown. (Signed by Judge Paul G. Gardephe on 6/14/2011) (ja) (Entered: 06/15/2011)
10	July 26, 2011	Request	NOTICE OF APPEARANCE by Virginia Jackson Nimick on behalf of John Irizarry, The City of New York (Nimick, Virginia) (Entered: 07/26/2011)
11	July 27, 2011	Request	NOTICE OF CHANGE OF ADDRESS by Virginia Jackson Nimick on behalf of Gary Hyde, John Irizarry. New Address:

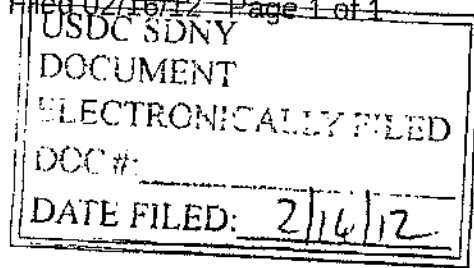
			New York City Law Department, Office of Corporation Counsel, 100 Church Street, New York, New York, United States 10007, 212-442-2715. (Nimick, Virginia) (Entered: 07/27/2011)
<u>12</u>	Aug 24, 2011	<u>View</u>	AMENDED COMPLAINT amending 1 Complaint against The City of New York, Michael Denave, Jorge Arancibia, Randy Rose, Constantine Charidemou, George Anarella, Joseph Milazzo with JURY DEMAND. Document filed by Gary Hyde. Related document: 1 Complaint filed by Gary Hyde.(tro) (Entered: 08/26/2011)
	Aug 24, 2011		SUMMONS ISSUED as to George Anarella, Jorge Arancibia, Michael Denave, John Irizarry, Joseph Milazzo, Randy Rose, The City of New York. (tro) (Entered: 08/26/2011)
13	Sept 7, 2011	Request	Minute Entry for proceedings held before Judge Paul G. Gardephe: Status Conference held on 9/7/2011, (Status Conference set for 12/1/2011 at 03:00 PM in Courtroom 6B, 500 Pearl Street, New York, NY 10007 before Judge Paul G. Gardephe.). (mr) (Entered: 09/07/2011)
14	Sept 8, 2011	Request	ORDER: It is hereby ORDERED that the fact discovery deadline is extended to December 9, 2011. It is further ORDERED that the Amended Complaint filed with this Court on August 24, 2011 is approved nunc pro tunc. It is further ORDERED that the next status conference in this matter is scheduled for December 1, 2011 at 3:00p.m. (Discovery due by 12/9/2011., Status Conference set for 12/1/2011 at 03:00 PM before Judge Paul G. Gardephe.) (Signed by Judge Paul G. Gardephe on 9/7/2011) (mro) (Entered: 09/08/2011)
15	Sept 8, 2011	Request	AFFIDAVIT OF SERVICE. Michael Denave served on 8/25/2011, answer due 9/15/2011. Service was accepted by Gregor Georiudis, co-worker. Document filed by Gary Hyde. (Bellin, Eugene) (Entered: 09/08/2011)
16	Sept 8, 2011	Request	AFFIDAVIT OF SERVICE. Jorge Arancibia served on 8/25/2011, answer due 9/15/2011. Service was accepted by Gregor Georiudis, co-worker. Document filed by Gary Hyde. (Bellin, Eugene) (Entered: 09/08/2011)
17	Sept 8, 2011	Request	AFFIDAVIT OF SERVICE. Randy Rose served on 8/25/2011, answer due 9/15/2011. Service was accepted by Gregor Georiudis, co-worker. Document filed by Gary Hyde. (Bellin, Eugene) (Entered: 09/08/2011)
18	Sept 8, 2011	Request	AFFIDAVIT OF SERVICE. Constantine Charidemou served on 8/25/2011, answer due 9/15/2011. Service was accepted by Gregor Georiudis, co-worker. Document filed by Gary Hyde. (Bellin, Eugene) (Entered: 09/08/2011)
19	Sept 8, 2011	Request	AFFIDAVIT OF SERVICE. George Anarella served on 8/25/2011, answer due 9/15/2011. Service was accepted by Gregor Georiudis, co-worker. Document filed by Gary Hyde.

20	Sept 20, 2011	Request	(Bellin, Eugene) (Entered: 09/08/2011) ENDORSED LETTER addressed to Judge Paul G. Gardephe from Virginia J. Nimick dated 9/14/2011 re: Counsel for the Defendants City of New York and John Irizarry writes to request an enlargement of time until October 15, 2011, for the additional individually named defendants to answer or otherwise respond to the complaint. ENDORSEMENT: The Application is granted. (Signed by Judge Paul G. Gardephe on 9/20/2011) (ab) (Entered: 09/20/2011)
21	Nov 7, 2011	Request	ANSWER to 12 Amended Complaint, with JURY DEMAND. Document filed by George Anarella, Jorge Arancibia, Constantine Charidemou, Michael Denave, John Irizarry, Randy Rose, The City of New York.(Nimick, Virginia) (Entered: 11/07/2011)
	Dec 2, 2011		Minute Entry for proceedings held before Judge Paul G. Gardephe: Initial Pretrial Conference held on 12/2/2011. (mr) (Entered: 12/02/2011)
22	Dec 14, 2011	Request	ORDER REFERRING CASE TO MAGISTRATE JUDGE. Order that case be referred to the Clerk of Court for assignment to a Magistrate Judge for Settlement. Referred to Magistrate Judge Theodore H. Katz. (Signed by Judge Paul G. Gardephe on 12/12/2011) (ae) (Entered: 12/14/2011)
23	Dec 14, 2011	Request	Letter addressed to Judge Paul G. Gardephe from Eugene M. Bellin dated 12/12/2011 re: Counsel for Plaintiff writes on behalf of counsel for all parties requesting that Your Honor issue an order consenting to the parties' request for reference of this matter to a magistrate judge for a settlement conference to be held within 45 days. (ae) (Entered: 12/14/2011)
24	Dec 16, 2011	Request	ENDORSED LETTER addressed to Magistrate Judge Theodore H. Katz from Eugene M. Bellin dated 12/16/2011 re: Counsel for the Plaintiff writes to request that the Court schedule a conference. ENDORSEMENT: The conference will take place on 1/19/2012 at 2:00 PM in Courtroom 17D. Plaintiff must be present at the conference and those attending must have settlement authority. (Settlement Conference set for 1/19/2012 at 02:00 PM in Courtroom 17D, 500 Pearl Street, New York, NY 10007 before Judge Paul G. Gardephe.) (Signed by Magistrate Judge Theodore H. Katz on 12/16/2011) (ab) Modified on 12/20/2011 (ab). (Entered: 12/16/2011)
25	Dec 20, 2011	Request	NOTICE OF APPEARANCE by Virginia Jackson Nimick on behalf of Joseph Milazzo (Nimick, Virginia) (Entered: 12/20/2011)
26	Dec 20, 2011	Request	ANSWER to 12 Amended Complaint, with JURY DEMAND. Document filed by Joseph Milazzo.(Nimick, Virginia)

			(Entered: 12/20/2011)
<u>27</u>	Dec 30, 2011	Request	AFFIDAVIT OF SERVICE. Joseph Milazzo served on 12/14/2011, answer due 1/4/2012. Service was accepted by Det. John Montes. Document filed by Gary Hyde. (Bellin, Eugene) (Entered: 12/30/2011)
<u>28</u>	Jan 5, 2012	Request	STIPULATED CONFIDENTIALITY AGREEMENT AND PROTECTIVE ORDER...regarding procedures to be followed that shall govern the handling of confidential material... (Signed by Judge Paul G. Gardephe on 1/4/2012) (jfe) (Entered: 01/05/2012)
	Jan 19, 2012		Minute Entry for proceedings held before Magistrate Judge Theodore H. Katz: Settlement Conference held on 1/19/2012. (eef) (Entered: 01/24/2012)
<u>29</u>	Feb 16, 2012	<u>View</u>	ORDER OF DISMISSAL: The Court having been advised that all claims asserted herein have been settled, it is ORDERED, that the above-entitled action be, and hereby is, dismissed with prejudice but without costs; provided, however, that if the settlement is not consummated within thirty days of this order, any party may apply by letter within the thirty-day period for restoration of the action to the calendar of the undersigned, in which event the action will be restored. Any pending motions are moot. (Signed by Judge Paul G. Gardephe on 2/16/2012) (djg) (Entered: 02/17/2012)
<u>30</u>	Mar 16, 2012	<u>View</u>	STIPULATION OF SETTLEMENT AND ORDER OF DISMISSAL: NOW, THEREFORE, IT IS HEREBY STIPULATED AND AGREED, by and between the undersigned, as follows: 1. The above-referenced action is hereby dismissed against defendants, City of New York, John Irizarry, Michael DeNavc, Jorge Arancibia, Randy Rose, Constantine Charidemou, George Anarella, and Joseph Milazzo, with prejudice, and without costs, expenses, or attorneys' fees in excess of the amount specified in paragraph "2" herein. 2. The City of New York hereby agrees to pay plaintiff Gary Hyde the sum of Thirty-Five Thousand Dollars in full satisfaction of all claims, including claims for costs, expenses and attorneys' fees. In consideration for the payment of this sum, plaintiff agrees to dismissal of all the claims against the defendants City of New York, John Irizarry, Michael DeNave, Jorge Arancibia, Randy Rose, Constantine Charidemou, George Anarella, and Joseph Milazzo, and to release the defendants and any present or former employees and agents of the City of New York or any agency thereof, from any and all liability, claims, or rights of action which were or could have been alleged in this action, including claims for costs, expenses, and attorneys' fees. (Signed by Judge Paul G. Gardephe on 3/15/2012) (mro) Modified on 3/20/2012 (mro). (Entered: 03/16/2012)

General Information

Court	United States District Court for the Southern District of New York; United States District Court for the Southern District of New York
Federal Nature of Suit	Civil Rights - Other[440]
Docket Number	1:10-cv-09407
Status	Closed



UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

GARY HYDE

Plaintiff,

-against-

CITY OF NEW YORK, ET AL,

Defendants.

ORDER OF DISMISSAL

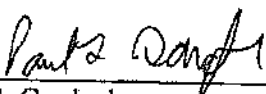
10 Civ. 9407(PGG)

PAUL G. GARDEPHE, U.S.D.J.:

The Court having been advised that all claims asserted herein have been settled, it is ORDERED, that the above-entitled action be, and hereby is, dismissed with prejudice but without costs; provided, however, that if the settlement is not consummated within thirty days of this order, any party may apply by letter within the thirty-day period for restoration of the action to the calendar of the undersigned, in which event the action will be restored. Any pending motions are moot.

Dated: New York, New York
February 16, 2012

SO ORDERED.



Paul G. Gardephe
United States District Judge

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

-----X
GARY HYDE,

Plaintiff,

- against -

THE CITY OF NEW YORK, JOHN IRIZARRY,
MICHAEL DeNAVE, JORGE ARANCIBIA,
RANDY ROSE, CONSTANTINE CHARIDEMOU,
GEORGE ANARELLA, and JOSEPH MILAZZO,

Defendants
-----X

10CV9407(PGG)

AMENDED COMPLAINT AND
DEMAND FOR JURY TRIAL

ECF CASE

Plaintiff, by his attorney, Eugene M. Bellin, complaining of the defendants, alleges:

NATURE OF THE ACTION

1. This is a civil rights action to redress the defendants' violations of the rights accorded to plaintiff Gary Hyde by the Civil Rights Act of 1871, 42 U.S.C. §1983, by the Constitution of the United States, including the Fourth, Fifth and Fourteenth Amendments, and by the laws and the Constitution of the State of New York.

2. Gary Hyde is an African American citizen of the United States who (1) on September 23, 2009, was stopped, seized, and detained by New York City police officers who then searched his vehicle without a warrant and without probable cause to stop, seize and detain him or to search his vehicle, and, on a separate occasion, (2) on March 31, 2010, was seized, arrested, assaulted and charged with Disorderly Conduct and Resisting Arrest, held in custody, and prosecuted on false criminal charges of Disorderly Conduct and Resisting Arrest. The stop of the plaintiff and the search of his vehicle on September 23, 2009 were the result of a policy or practice of racial profiling adopted or approved by defendant The City of New York. The defendants' actions were unlawful,

and the plaintiff brings this action seeking compensatory and punitive damages.

JURISDICTION AND VENUE

3. Jurisdiction of this Court is invoked pursuant to the Constitution of the United States, 28 U.S.C. §§1331, 1343(3) and (4), 42 U.S.C. §§1983 and 1988, in that this is an action seeking to redress the violations of the plaintiff's constitutional and civil rights, and 28 U.S.C. §1367(a), in that the state and federal claims arise from a common nucleus of operative facts such that they are so related that they form part of the same case or controversy under Article III of the United States Constitution.

4. Venue is proper in this Court pursuant to 28 U.S.C. §1391(b) and (c) in that all of the events which give rise to the claim occurred within the jurisdiction of the United States District Court for the Southern District of New York, defendants John Irizarry, Michael DeNave, Jorge Arancibia, Randy Rose, Constantine Charidemou, George Anarella, and Joseph Milazzo can be found within the Southern District of New York, and defendant The City of New York is a municipal corporation located in the Southern District of New York which is subject to personal jurisdiction in the Southern District of New York.

PARTIES

5. Plaintiff Gary Hyde is an African-American citizen of the United States who resides in the State of New Jersey.

6. Defendant The City of New York is, and at all times relevant herein was, a municipal corporation created under the laws of the State of New York.

7. At all times relevant herein, defendant The City of New York maintained a police department.

8. Defendant John Irizarry is a natural person who, at all times relevant to this action, was

employed by defendant The City of New York as a police officer.

9. At all times relevant herein, defendant John Irizarry was acting within the scope of his employment by defendant The City of New York.

10. Defendant Michael DeNave is a natural person who, at all times relevant to this action, was employed by defendant The City of New York as a police officer.

11. At all times relevant herein, defendant Michael DeNave was acting within the scope of his employment by defendant The City of New York.

12. Defendant Jorge Arancibia is a natural person who, at all times relevant to this action, was employed by defendant The City of New York as a police officer.

13. At all times relevant herein, defendant Jorge Arancibia was acting within the scope of his employment by defendant The City of New York.

14. Defendant Randy Rose is a natural person who, at all times relevant to this action, was employed by defendant The City of New York as a police officer.

15. At all times relevant herein, defendant Randy Rose was acting within the scope of his employment by defendant The City of New York.

16. Defendant Constantine Charidemou is a natural person who, at all times relevant to this action, was employed by defendant The City of New York as a police officer.

17. At all times relevant herein, defendant Constantine Charidemou was acting within the scope of his employment by defendant The City of New York.

18. Defendant George Anarella is a natural person who, at all times relevant to this action, was employed by defendant The City of New York as a police officer.

19. At all times relevant herein, defendant George Anarella was acting within the scope of his employment by defendant The City of New York.

20. Defendant Joseph Milazzo is a natural person who, at all times relevant to this action, was employed by defendant The City of New York as a police officer.

21. At all times relevant herein, defendant Joseph Milazzo was acting within the scope of his employment by defendant The City of New York.

NOTICES OF CLAIM

22. On December 18, 2009, plaintiff Gary Hyde served on the Comptroller of the City of New York a Notice of Claim setting forth the time when, the place where and the manner in which his claim based on the events of September 23, 2009 arose.

23. On June 29, 2010, plaintiff Gary Hyde served on the Comptroller of the City of New York a Notice of Claim setting forth the time when, the place where and the manner in which his claim based on the events of March 31, 2010 arose.

24. More than thirty days have elapsed since the plaintiff's Notices of Claim were served upon defendant The City of New York and said defendant has neglected and/or refused to make an adjustment or payment.

STATEMENT OF CLAIMS

1. THE ARREST OF SEPTEMBER 23, 2009

25. Plaintiff incorporates by reference paragraphs 1 through 24 of this complaint as though the same were set forth fully herein.

26. On September 23, 2009, at approximately 2:15 a.m., plaintiff Gary Hyde was lawfully operating a motor vehicle on First Avenue in the County of New York, City and State of New York.

27. On September 23, 2009, at approximately 2:15 a.m., on First Avenue, in the County of New York, City and State of New York, defendants Randy Rose, Constantine Charidemou, George Anarella and Joseph Milazzo directed plaintiff Gary Hyde to stop his motor vehicle.

28. At the time defendants Randy Rose, Constantine Charidemou, George Anarella and Joseph Milazzo directed plaintiff Gary Hyde to stop his motor vehicle, the plaintiff had not committed any crime or offense.

29. Defendant Randy Rose, defendant Constantine Charidemou, defendant George Anarella or defendant Joseph Milazzo asked plaintiff Gary Hyde for his license and registration, then directed the plaintiff to exit his vehicle.

30. The same defendant directed plaintiff Gary Hyde to place his hands against his vehicle, conducted a procedure known as a frisk, and searched the pockets of the plaintiff's clothing.

31. The conduct of defendants Randy Rose, Constantine Charidemou, George Anarella and Joseph Milazzo constituted a seizure of plaintiff Gary Hyde and his vehicle.

32. Defendants Randy Rose, Constantine Charidemou, George Anarella and Joseph Milazzo then proceeded to search plaintiff Gary Hyde's vehicle.

33. Plaintiff Gary Hyde was detained by defendants Randy Rose, Constantine Charidemou, George Anarella and Joseph Milazzo while they searched his vehicle.

34. Plaintiff Gary Hyde was not free to leave while defendants Randy Rose, Constantine Charidemou, George Anarella and Joseph Milazzo conducted a search of his vehicle.

35. The seizure and detention of plaintiff Gary Hyde by defendants Randy Rose, Constantine Charidemou, George Anarella and Joseph Milazzo constituted an arrest.

36. Defendants Randy Rose, Constantine Charidemou, George Anarella and Joseph Milazzo lacked any basis to formulate a reasonable, articulable suspicion that plaintiff Gary Hyde had engaged in or was about to engage in criminal conduct.

37. Defendants Randy Rose, Constantine Charidemou, George Anarella and Joseph Milazzo lacked any basis to formulate a reasonable, articulable suspicion that plaintiff Gary Hyde's

vehicle contained any weapon or other contraband.

38. Defendants Randy Rose, Constantine Charidemou, George Anarella and Joseph Milazzo did not find any weapon, drug or contraband on the person of plaintiff Gary Hyde.

39. Defendants Randy Rose, Constantine Charidemou, George Anarella and Joseph Milazzo did not find any weapon, drug or contraband in plaintiff Gary Hyde's vehicle.

40. After detaining plaintiff Gary Hyde for approximately 25 minutes, defendants Randy Rose, Constantine Charidemou, George Anarella and Joseph Milazzo departed.

41. The seizure, frisk, search, detention, arrest, and imprisonment of plaintiff Gary Hyde were made without any warrant or other legal process directing or authorizing his seizure, detention, arrest, or imprisonment, or the search of his person and affects.

42. The seizure, frisk, detention, arrest, imprisonment and search of plaintiff Gary Hyde and his vehicle were made without probable cause to believe that he had committed a crime.

2. THE ARREST OF MARCH 31, 2010

43. On March 31, 2010, plaintiff Gary Hyde was lawfully present in the premises located at 81 E. 110th Street, New York, New York.

44. On March 31, 2010, at approximately 3:00 a.m., at 81 E. 110th Street, New York, New York, defendants John Irizarry and Michael DeNave directed plaintiff Gary Hyde, at gunpoint, to exit the premises.

45. When plaintiff Gary Hyde exited the premises at 81 E. 110th Street at the direction of defendants John Irizarry and Michael DeNave, these defendants violently pushed defendant Gary Hyde against a gate at the entrance to the premises.

46. Defendants John Irizarry and Michael DeNave then directed plaintiff Gary Hyde to get to his knees and handcuffed his wrists behind his back.

47. Defendants John Irizarry and Michael DeNave then instructed plaintiff Gary Hyde to lie face down on the sidewalk.

48. Defendants John Irizarry, Michael DeNave, and Jorge Arancibia physically forced plaintiff Gary Hyde to lie on the sidewalk, forcibly placing knees into his back.

49. Police officers whose identities are unknown to the plaintiff then searched the plaintiff's vehicle, which was parked nearby.

50. Defendants John Irizarry, Michael DeNave and Jorge Arancibia arrested plaintiff Gary Hyde on charges of Resisting Arrest and Disorderly Conduct.

51. The charges upon which defendants John Irizarry, Michael DeNave and Jorge Arancibia arrested plaintiff Gary Hyde were false.

52. Plaintiff Gary Hyde was transported to the 23rd Precinct at 162 East 102 Street, New York, New York 10029, where he was imprisoned for a period of time.

53. Plaintiff Gary Hyde was subsequently transported to Manhattan Central Booking, where he continued to be imprisoned.

54. While plaintiff Gary Hyde was being held in custody, he was transported to Bellevue Hospital.

55. On information and belief, on March 31, 2010, defendant John Irizarry falsely informed an Assistant District Attorney in the office of the New York County District Attorney that plaintiff Gary Hyde had committed the crime of Resisting Arrest and the violation of Disorderly Conduct.

56. On March 31, 2010, defendant John Irizarry instituted a criminal proceeding against plaintiff Gary Hyde in the Criminal Court of the City of New York, County of New York, accusing the plaintiff of the crime of Resisting Arrest and the violation of Disorderly Conduct.

57. On the night of March 31, 2010, plaintiff Gary Hyde was arraigned before a judge of the Criminal Court of the City of New York, County of New York, and released in his own recognizance.

58. On May 19, 2010, the criminal charges brought by defendant John Irizarry against plaintiff Gary Hyde were dismissed on motion of the New York County District Attorney.

COUNT I

59. Plaintiff incorporates by reference paragraphs 1 through 58 of this Complaint as though the same were set forth fully herein.

60. The seizure, frisk, detention, arrest and imprisonment of plaintiff Gary Hyde and the search of his vehicle on September 23, 2009, were made without any warrant or other legal process directing or authorizing his seizure, arrest, detention or imprisonment or the search of his vehicle.

61. Plaintiff Gary Hyde was aware of his seizure, detention, arrest and imprisonment, and the search of his vehicle, by defendants Randy Rose, Constantine Charidemou, George Anarella and Joseph Milazzo.

62. Plaintiff Gary Hyde did not consent to his seizure, frisk, search, detention, arrest or imprisonment, or the search of his vehicle, on September 23, 2009.

63. As a result of the foregoing, plaintiff Gary Hyde was deprived of his liberty, was imprisoned, was greatly humiliated, was subjected to mental and physical distress, and was subjected to embarrassment and humiliation.

64. The seizure, frisk, search, detention, arrest and imprisonment of plaintiff Gary Hyde, and the search of his vehicle, on September 23, 2009, deprived him of his right to be free of unlawful searches and seizures and his right not to be deprived of his liberty without due process of law guaranteed by the Fourth, Fifth and Fourteenth Amendments of the Constitution of the United States.

65. Defendants Randy Rose, Constantine Charidemou, George Anarella and Joseph Milazzo were acting under color of state law when they seized, frisked, searched, detained, arrested and imprisoned plaintiff Gary Hyde, and searched his vehicle, on September 23, 2009.

66. Defendants Randy Rose, Constantine Charidemou, George Anarella and Joseph Milazzo deprived plaintiff Gary Hyde of his rights to be free of unlawful searches and seizures, and not to be deprived of his liberty without due process of law guaranteed by the Fourth, Fifth and Fourteenth Amendments of the Constitution of the United States under color of state law, in violation 42 U.S.C. §1983, by seizing, frisking, searching, detaining, arresting and imprisoning plaintiff Gary Hyde and searching his vehicle without a warrant on September 23, 2009.

COUNT II

67. Plaintiff incorporates by reference paragraphs 1 through 66 of this Complaint as though the same were set forth fully herein.

68. The Police Department of defendant The City of New York has adopted a policy of having its police officers stop, frisk and search members of the public on the basis of race, to wit, people of African American heritage.

69. Plaintiff Gary Hyde was stopped, frisked, searched, detained, arrested and imprisoned by defendants Randy Rose, Constantine Charidemou, George Anarella and Joseph Milazzo because he is African American.

70. Plaintiff Gary Hyde was stopped, frisked, searched, detained, arrested, and imprisoned, and his vehicle was searched by defendants Randy Rose, Constantine Charidemou, George Anarella and Joseph Milazzo because of his race.

71. Defendant The City of New York implemented, enforced, encouraged and sanctioned a policy, practice and/or custom of suspicionless stops, frisks and searches of African-American

individuals in violation of the Fourth Amendment and the Equal Protection Clause of the Fourteenth Amendment of the Constitution of the United States.

72. The existence of the unconstitutional policy to stop, frisk and search citizens on the basis of their race adopted by officials of defendant The City of New York may be inferred from repeated occurrences of similar wrongful conduct, as documented in the following civil rights actions filed against The City of New York:

David Floyd *et anos.* v. The City of New York *et anos.*, United States District Court, Southern District of New York, 08 Civ 01034;

Kelvin Daniels *et anos.* v. The City of New York *et anos.*, United States District Court, Southern District of New York, 99 Civ 1695;

David Henry v. Rodney Paige, Vito Ardito, Joeselyn Sanabria, Ylka Morales, Oscar Sandino, Gilbert Rivera, and the City of New York, 09 Civ1245.

73. Defendant The City of New York knew, or should have known, that as a direct result of this policy, practice and/or custom, the Constitutional rights of plaintiff Gary Hyde would be violated.

74. Defendant The City of New York implemented, enforced, encouraged, sanctioned and failed to rectify such policy, practice and/or custom with deliberate indifference to and disregard for the constitutional rights of African-American individuals, and more particularly, the constitutional rights of plaintiff Gary Hyde.

75. Defendant The City of New York was acting under color of state law when it formulated and implemented a policy, custom or practice for police officers to stop and frisk individuals based on their race.

76. Defendant The City of New York deprived plaintiff Gary Hyde of his rights to be free of unlawful searches and seizures, and not to be deprived of his liberty without due process of law

guaranteed by the Fourth, Fifth and Fourteenth Amendments of the Constitution of the United States under color of state law, in violation 42 U.S.C. §1983, by adopting and enforcing a policy, practice or custom of stopping, frisking and searching citizens on the basis of their race

COUNT III

77. Plaintiff incorporates by reference paragraphs 1 through 76 of this Complaint as though the same were set forth fully herein.

78. The acts of September 23, 2009 complained of were carried out by defendants Randy Rose, Constantine Charidemou, George Anarella and Joseph Milazzo in their capacities as police officers and employees of defendant The City of New York, with all the actual and/or apparent authority attendant thereto.

79. The acts complained of were carried out by defendants Randy Rose, Constantine Charidemou, George Anarella and Joseph Milazzo in their capacities as police officers pursuant to the customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.

80. Defendant The City of New York implemented, enforced, encouraged and sanctioned a policy, practice and/or custom of stopping, seizing, frisking, searching and arresting persons on insufficient evidence in violation of the Fourth and Fifth Amendment and the Equal Protection Clause of the Fourteenth Amendment of the Constitution of the United States.

81. The aforesaid customs, policies, usages, practices, procedures, and rules of defendant The City of New York include, but are not limited to, the following:

- (a) Defendant The City of New York failed properly to train police officers in the standards for probable cause for the warrantless seizure and arrest of individuals and their vehicles consistent with the requirements of the Fourth, Fifth and Fourteenth Amendments of the Constitution of the United States;

- (b) Defendant The City of New York failed properly to train police officers in the circumstances under which probable cause exists for the warrantless arrest of an individual;
- (c) Defendant The City of New York failed properly to train police officers in the circumstances under which a person's vehicle can be searched without a warrant;
- (d) Defendant The City of New York failed properly to supervise police officers during the performance of their duties, and more particularly during warrantless arrests and searches of vehicles;
- (e) Defendant The City of New York failed properly to monitor arrests made by its police officers to determine if its police officers were following proper standards for probable cause for the warrantless seizure and arrest of individuals consistent with the requirements of the Fourth, Fifth and Fourteenth Amendments of the Constitution of the United States;
- (f) Defendant The City of New York failed properly to monitor searches of vehicles made by its police officers to determine if its police officers were following proper standards for the warrantless searches of vehicles consistent with the requirements of the Fourth and Fourteenth Amendments of the Constitution of the United States;
- (g) Defendant The City of New York failed to discipline police officers for making warrantless arrests where probable cause for an arrest did not exist;
- (h) Defendant The City of New York failed to discipline police officers for making warrantless searches of vehicles.

82. The failure of defendant The City of New York properly to train, supervise, monitor and discipline its police officers constituted deliberate indifference to the rights of persons with whom its police officers come into contact.

83. The stop, frisk, search, detention, arrest, and imprisonment of plaintiff Gary Hyde and the search of his vehicle on September 23, 2009 resulted from the failure of defendant The City of New York properly to train, supervise, monitor and discipline its police officers in the standards of probable cause and the requirements for warrantless arrests and searches.

84. Defendant The City of New York was acting under color of state law when it formulated and implemented a policy, custom or practice for police officers to make warrantless arrests and searches without probable cause.

85. Defendant The City of New York deprived plaintiff Gary Hyde of his rights to be free of unlawful searches and seizures and not to be deprived of his liberty and property without due process of law guaranteed by the Fourth, Fifth and Fourteenth Amendments of the Constitution of the United States under color of state law, in violation of 42 U.S.C. §1983, by adopting and enforcing a policy, practice or custom of failing properly to train its police officers in the standards for making warrantless arrests and searches.

86. The aforesaid conduct of defendant The City of New York violated the plaintiff's rights under 42 U.S.C. §1983 and the Fourth, Fifth and Fourteenth Amendments of the Constitution of the United States.

COUNT IV

87. Plaintiff incorporates by reference paragraphs 1 through 86 of this Complaint as though the same were set forth fully herein.

88. Upon information and belief, at all times relevant herein, defendant The City of New York was aware from Notices of Claim, from lawsuits, from claims filed with the New York City Police Department and the Civilian Complaint Review Board, and from the New York City Police Department's own observations, that defendants Randy Rose, Constantine Charidemou, George Anarella and Joseph Milazzo are unfit, ill tempered police officers who have the propensity to commit the acts alleged herein.

89. Upon information and belief, defendant The City of New York failed adequately to investigate prior complaints against these officers.

90. The failure of defendant The City of New York properly to take remedial action to train, retrain, supervise, monitor and discipline police officers for violations of Constitutional rights constituted deliberate indifference to the rights of persons with whom its police officers come into contact.

91. Nevertheless, defendant The City of New York exercised deliberate indifference by failing to take remedial action by failing to train, retrain, supervise, monitor and discipline the officers and improperly retained and utilized them.

92. Defendant The City of New York knew, or should have known, that as a direct result of this policy, practice and/or custom, the Constitutional rights of plaintiff Gary Hyde would be violated.

93. Defendant The City of New York implemented, enforced, encouraged, sanctioned and failed to rectify such policy, practice and/or custom with deliberate indifference to and disregard for the civil rights of individuals, and more particularly, the civil rights of plaintiff Gary Hyde.

94. Defendant The City of New York was acting under color of state law when it formulated and implemented a policy, custom or practice of failing adequately to investigate complaints against police officers for violating civil rights and to take appropriate remedial action.

95. Defendant The City of New York deprived plaintiff Gary Hyde of his rights to be free of unlawful searches and seizures and not to be deprived of his liberty and property without due process of law guaranteed by the Fourth, Fifth and Fourteenth Amendments of the Constitution of the United States under color of state law, in violation of 42 U.S.C. §1983, by adopting and enforcing a policy, practice or custom of failing adequately to investigate complaints against police officers and to take appropriate remedial action to prevent further violations of the civil rights of

members of the public, which resulted in the stop, detention, arrest and imprisonment of plaintiff Gary Hyde and the search of his vehicle on September 23, 2009.

COUNT V

96. Plaintiff incorporates by reference paragraphs 1 through 95 of this Complaint as though the same were set forth fully herein.

97. Defendants Randy Rose, Constantine Charidemou, George Anarella, Joseph Milazzo and The City of New York falsely imprisoned plaintiff Gary Hyde by seizing, detaining, arresting and imprisoning him on September 23, 2009.

98. As a result of the foregoing, plaintiff Gary Hyde was deprived of his liberty, was imprisoned, was greatly humiliated, was subjected to mental and physical distress, and was subjected to embarrassment.

COUNT VI

99. Plaintiffs incorporate by reference paragraphs 1 through 98 of this Complaint as though the same were set forth fully herein.

100. The seizure, arrest, detention and imprisonment of plaintiff Gary Hyde on March 31, 2010, were made without any warrant or other legal process directing or authorizing his seizure, arrest, detention or imprisonment.

101. The charges upon which defendants John Irizarry, Michael DeNave and Jorge Arancibia arrested plaintiff Gary Hyde were false.

102. The charges were made by defendants John Irizarry, Michael DeNave and Jorge Arancibia against plaintiff Gary Hyde with knowledge that they were false.

103. Plaintiff Gary Hyde was aware of his seizure, arrest, detention and imprisonment by defendants John Irizarry, Michael DeNave and Jorge Arancibia.

104. Plaintiff Gary Hyde did not consent to his seizure, arrest, detention or imprisonment on March 31, 2010.

105. As a result of the foregoing, plaintiff Gary Hyde was deprived of his liberty, was imprisoned, was greatly humiliated, was subjected to mental and physical distress, and was subjected to embarrassment and humiliation.

106. The seizure, arrest, detention and imprisonment of plaintiff Gary Hyde on March 31, 2010, deprived him of his right to be free of unlawful searches and seizures and his right not to be deprived of his liberty without due process of law guaranteed by the Fourth, Fifth and Fourteenth Amendments of the Constitution of the United States.

107. Defendants John Irizarry, Michael DeNave and Jorge Arancibia were acting under color of state law when they seized, arrested and imprisoned plaintiff Gary Hyde on March 31, 2010.

108. Defendants John Irizarry, Michael DeNave and Jorge Arancibia deprived plaintiff Gary Hyde of his rights to be free of unlawful searches and seizures and not to be deprived of his liberty without due process of law guaranteed by the Fourth, Fifth and Fourteenth Amendments of the Constitution of the United States under color of state law, in violation of 42 U.S.C. §1983, by seizing, detaining, arresting and imprisoning plaintiff Gary Hyde on false criminal charges.

COUNT VII

109. Plaintiff incorporates by reference paragraphs 1 through 108 of this Complaint as though the same were set forth fully herein.

110. The criminal charges brought by defendant John Irizarry against plaintiff Gary Hyde in the Criminal Court of the City of New York, County of New York, on March 31, 2010, were false.

111. The criminal proceeding instituted by defendant John Irizarry against plaintiff Gary Hyde in the Criminal Court of the City of New York, County of New York, on March 31, 2010, was

instituted by defendant John Irizarry with knowledge that the charges were false.

112. The criminal proceeding instituted by defendant John Irizarry against plaintiff Gary Hyde in the Criminal Court of the City of New York, County of New York, on March 31, 2010, was instituted without probable cause to believe that the plaintiff had committed the offenses charged.

113. Defendant John Irizarry was acting with malice when he instituted the criminal proceeding against plaintiff Gary Hyde on March 31, 2010.

114. The criminal proceeding instituted by defendant John Irizarry against plaintiff Gary Hyde in the Criminal Court of the City of New York, County of New York, was terminated in plaintiff Gary Hyde's favor.

115. Defendant John Irizarry was acting under color of state law when he falsely informed an Assistant District Attorney in the office of the Bronx County District Attorney that plaintiff Gary Hyde had committed the crime of Resisting Arrest and the violation of Disorderly Conduct.

116. Defendant John Irizarry was acting under color of state law when he instituted a criminal proceeding against plaintiff Gary Hyde in the Criminal Court of the City of New York, County of New York.

117. Defendant John Irizarry deprived plaintiff Gary Hyde of his right not to be deprived of his liberty without due process of law guaranteed by the Fourth, Fifth and Fourteenth Amendments of the Constitution of the United States under color of state law, in violation of 42 U.S.C. §1983, by prosecuting plaintiff Gary Hyde on false criminal charges.

COUNT VIII

118. Plaintiff incorporates by reference paragraphs 1 through 117 of this Complaint as though the same were set forth fully herein.

119. The acts of March 31, 2010, complained of were carried out by defendants John Irizarry, Michael DeNave and Jorge Arancibia in their capacities as police officers and employees of defendant The City of New York, with all the actual and/or apparent authority attendant thereto.

120. The acts complained of were carried out by defendants John Irizarry, Michael DeNave and Jorge Arancibia in their capacities as police officers pursuant to the customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.

121. The arrest, imprisonment and prosecution of plaintiff Gary Hyde on false criminal charges on March 31, 2010 resulted from the failure of defendant The City of New York properly to train, supervise, monitor and discipline its police officers in the standards of probable cause, the requirements for warrantless arrests, and the elements of Resisting Arrest and Disorderly Conduct.

122. Defendant The City of New York was acting under color of state law when it formulated and implemented a policy, custom or practice for police officers to make warrantless arrests without probable cause.

123. Defendant The City of New York deprived plaintiff Gary Hyde of his rights to be free of unlawful searches and seizures and not to be deprived of his liberty without due process of law guaranteed by the Fourth, Fifth and Fourteenth Amendments of the Constitution of the United States under color of state law, in violation of 42 U.S.C. §1983, by adopting and enforcing a policy, practice or custom of failing properly to train its police officers in the standards for making warrantless arrests.

124. The aforesaid conduct of defendant The City of New York violated the plaintiff's rights under 42 U.S.C. §1983 and the Fourth, Fifth and Fourteenth Amendments of the Constitution of the United States.

COUNT IX

125. Plaintiff incorporates by reference paragraphs 1 through 124 of this Complaint as though the same were set forth fully herein.

126. Upon information and belief, at all times relevant herein, defendant The City of New York was aware from Notices of Claim, from lawsuits, from claims filed with the New York City Police Department and the Civilian Complaint Review Board, and from the New York City Police Department's own observations, that defendants John Irizarry, Michael DeNave and Jorge Arancibia are unfit, ill tempered police officers who have the propensity to commit the acts alleged herein.

127. Upon information and belief, defendant The City of New York failed adequately to investigate prior complaints against these officers.

128. The failure of defendant The City of New York properly to take remedial action to train, retrain, supervise, monitor and discipline police officers for violations of Constitutional rights constituted deliberate indifference to the rights of persons with whom its police officers come into contact.

129. Nevertheless, defendant The City of New York exercised deliberate indifference by failing to take remedial action by failing to train, retrain, supervise, monitor and discipline the officers and improperly retained and utilized them.

130. Defendant The City of New York knew, or should have known, that as a direct result of this policy, practice and/or custom, the Constitutional rights of plaintiff Gary Hyde would be violated.

131. Defendant The City of New York implemented, enforced, encouraged, sanctioned and failed to rectify such policy, practice and/or custom with deliberate indifference to and disregard for the civil rights of individuals, and more particularly, the civil rights of plaintiff Gary Hyde.

132. Defendant The City of New York was acting under color of state law when it formulated and implemented a policy, custom or practice of failing adequately to investigate complaints against police officers for violating civil rights and to take appropriate remedial action.

133. Defendant The City of New York deprived plaintiff Gary Hyde of his rights to be free of unlawful searches and seizures and not to be deprived of his liberty and property without due process of law guaranteed by the Fourth, Fifth and Fourteenth Amendments of the Constitution of the United States under color of state law, in violation of 42 U.S.C. §1983, by adopting and enforcing a policy, practice or custom of failing adequately to investigate complaints against police officers and to take appropriate remedial action to prevent further violations of the civil rights of members of the public, which resulted in the arrest and prosecution of plaintiff Gary Hyde on March 31, 2010.

COUNT X

134. Plaintiff incorporates by reference paragraphs 1 through 133 of this Complaint as though the same were set forth fully herein.

135. Defendants John Irizarry, Michael DeNave, Jorge Arancibia and the City of New York committed an assault and battery on the person of plaintiff Gary Hyde in the course of seizing, detaining, arresting and imprisoning the plaintiff.

136. As a result of the foregoing, plaintiff Gary Hyde experienced pain, physical and emotional distress, hardship and anxiety.

COUNT XI

137. Plaintiff incorporates by reference paragraphs 1 through 136 of this Complaint as though the same were set forth fully herein.

138. Defendants John Irizarry, Michael DeNave, Jorge Arancibia and The City of New York falsely imprisoned plaintiff Gary Hyde by seizing, arresting and imprisoning him on false criminal charges.

139. As a result of the foregoing, plaintiff Gary Hyde was deprived of his liberty, was imprisoned, was greatly humiliated, was subjected to mental and physical distress, and was subjected to embarrassment and humiliation.

COUNT XII

140. Plaintiff incorporates by reference paragraphs 1 through 139 of this Complaint as though the same were set forth fully herein.

141. The institution of a criminal proceeding against plaintiff Gary Hyde based on false criminal charges by defendants John Irizarry and The City of New York constituted malicious prosecution.

142. As a result of the criminal proceeding instituted by defendants John Irizarry and The City of New York, plaintiff Gary Hyde was exposed to public ridicule, scorn, humiliation and embarrassment.

143. As a result of the criminal proceeding instituted by the defendants John Irizarry and The City of New York, plaintiff Gary Hyde was required to incur expenses for attorney's fees to defend against the false criminal charges.

PRAYER FOR RELIEF

WHEREFORE, plaintiff respectfully requests that this Court grant the following relief:

A. Award the plaintiff compensatory damages to be determined by the jury at the time of trial;

B. Award the plaintiff punitive damages to be determined by the jury at the time of trial;

C. Award the plaintiff reasonable attorneys' fees and costs, including the fees and costs of experts, incurred in prosecuting this action; and

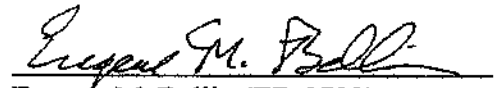
D. Grant such further relief as the Court deems necessary and proper.

JURY TRIAL DEMANDED

The plaintiff requests a jury trial on all questions of fact raised by his Complaint.

Dated: New York, New York
August 23, 2011

EUGENE M. BELLIN

A handwritten signature in cursive script, reading "Eugene M. Bellin", is written over a horizontal line.

Eugene M. Bellin (EB-0722)
Attorney for Plaintiff
233 Broadway - Suite 2201
New York, New York 10279
(212) 267-9100

This docket is current through 01/05/2018

Current Date: 1/5/2018

Source: U.S. District Court, Southern District of New York (Foley Square)

Court: U.S. District Court, Southern District of New York (Foley Square)
Case Title: Hyde v. The City of New York et al
Case: 1:10-CV-09407
Judge: Judge Paul G. Gardephe
Date Filed: 12/17/2010
Date Closed/Terminated: 02/16/2012
Case Status: CLOSED, CASREF, ECF

CASE INFORMATION

Case Number: 1:10CV09407
Referred To: Magistrate Judge Theodore H. Katz (Settlement)
Jury Demand: Both
Nature of Suit: Civil Rights: Other Civil Rights (440)
Jurisdiction: Federal Question
Cause: 42 USC 1983 Civil Rights Act

PARTICIPANT INFORMATION

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John Doe #1

Type: Defendant
Party Terminated: TERMINATED: 08/24/2011

John Doe #2

Type: Defendant
Party Terminated: TERMINATED: 08/24/2011

John Doe #3

Type: Defendant
Party Terminated: TERMINATED: 08/24/2011

John Doe #4

Type: Defendant
Party Terminated: TERMINATED: 08/24/2011

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CALENDAR INFORMATION

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DOCKET PROCEEDINGS (37)

Entry #: 30
Date: 03/16/2012

Description:
STIPULATION OF
SETTLEMENT AND ORDER
OF DISMISSAL: NOW,
THEREFORE, IT IS HEREBY
STIPULATED AND AGREED, by
and between the undersigned, as
follows: 1. The above-referenced
action is hereby dismissed
against defendants, City of New
York, John Irizarry, Michael
DeNavc, Jorge Arancibia, Randy
Rose, Constantine Charidemou,
George Anarella, and Joseph
Milazzo, with prejudice, and
without costs, expenses, or
attorneys' fees in excess of the
amount specified in paragraph
"2" herein. 2. The City of New
York hereby agrees to pay
plaintiff Gary Hyde the sum of
Thirty-Five Thousand Dollars
in full satisfaction of all claims,
including claims for costs,
expenses and attorneys' fees.
In consideration for the payment
of this sum, plaintiff agrees to
dismissal of all the claims against
the defendants City of New York,
John Irizarry, Michael DeNave,

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		Jorge Arancibia, Randy Rose, Constantine Charidemou, George Anarella, and Joseph Milazzo, and to release the defendants and any present or former employees and agents of the City of New York or any agency thereof, from any and all liability, claims, or rights of action which were or could have been alleged in this action, including claims for costs, expenses, and attorneys' fees. (Signed by Judge Paul G. Gardephe on 3/15/2012) (mro) Modified on 3/20/2012 (mro). (Entered: 03/16/2012)	
29	02/16/2012	ORDER OF DISMISSAL: The Court having been advised that all claims asserted herein have been settled, it is ORDERED, that the above-entitled action be, and hereby is, dismissed with prejudice but without costs; provided, however, that if the settlement is not consummated within thirty days of this order, any party may apply by letter within the thirty-day period for restoration of the action to the calendar of the undersigned, in which event the action will be restored. Any pending motions are moot. (Signed by Judge Paul G. Gardephe on 2/16/2012) (djg) (Entered: 02/17/2012)	ViewBatch Download
	01/19/2012	Minute Entry for proceedings held before Magistrate Judge Theodore H. Katz: Settlement Conference held on 1/19/2012. (eef) (Entered: 01/24/2012)	
28	01/05/2012	STIPULATED CONFIDENTIALITY AGREEMENT AND PROTECTIVE ORDER...regarding procedures to be followed that shall govern the handling of confidential material... (Signed by Judge Paul G. Gardephe on 1/4/2012) (jfe) (Entered: 01/05/2012)	ViewBatch Download
27	12/30/2011	AFFIDAVIT OF SERVICE. Joseph Milazzo served on 12/14/2011, answer due 1/4/2012. Service was accepted by Det. John Montes. Document filed by Gary Hyde. (Bellin, Eugene) (Entered: 12/30/2011)	ViewBatch Download

26	12/20/2011	ANSWER to 12 Amended Complaint, with JURY DEMAND. Document filed by Joseph Milazzo.(Nimick, Virginia) (Entered: 12/20/2011)	ViewBatch Download
25	12/20/2011	NOTICE OF APPEARANCE by Virginia Jackson Nimick on behalf of Joseph Milazzo (Nimick, Virginia) (Entered: 12/20/2011)	ViewBatch Download
24	12/16/2011	ENDORSED LETTER addressed to Magistrate Judge Theodore H. Katz from Eugene M. Bellin dated 12/16/2011 re: Counsel for the Plaintiff writes to request that the Court schedule a conference. ENDORSEMENT: The conference will take place on 1/19/2012 at 2:00 PM in Courtroom 17D. Plaintiff must be present at the conference and those attending must have settlement authority. (Settlement Conference set for 1/19/2012 at 02:00 PM in Courtroom 17D, 500 Pearl Street, New York, NY 10007 before Judge Paul G. Gardephe.) (Signed by Magistrate Judge Theodore H. Katz on 12/16/2011) (ab) Modified on 12/20/2011 (ab). (Entered: 12/16/2011)	ViewBatch Download
23	12/14/2011	Letter addressed to Judge Paul G. Gardephe from Eugene M. Bellin dated 12/12/2011 re: Counsel for Plaintiff writes on behalf of counsel for all parties requesting that Your Honor issue an order consenting to the parties' request for reference of this matter to a magistrate judge for a settlement conference to be held within 45 days. (ae) (Entered: 12/14/2011)	ViewBatch Download
22	12/14/2011	ORDER REFERRING CASE TO MAGISTRATE JUDGE. Order that case be referred to the Clerk of Court for assignment to a Magistrate Judge for Settlement. Referred to Magistrate Judge Theodore H. Katz. (Signed by Judge Paul G. Gardephe on 12/12/2011) (ae) (Entered: 12/14/2011)	ViewBatch Download
	12/02/2011	Minute Entry for proceedings held before Judge Paul G. Gardephe: Initial Pretrial Conference held on 12/2/2011. (mr) (Entered: 12/02/2011)	

21	11/07/2011	ANSWER to 12 Amended Complaint, with JURY DEMAND. Document filed by George Anarella, Jorge Arancibia, Constantine Charidemou, Michael Denave, John Irizarry, Randy Rose, The City of New York.(Nimick, Virginia) (Entered: 11/07/2011)	ViewBatch Download
20	09/20/2011	ENDORSED LETTER addressed to Judge Paul G. Gardephe from Virginia J. Nimick dated 9/14/2011 re: Counsel for the Defendants City of New York and John Irizarry writes to request an enlargement of time until October 15, 2011, for the additional individually named defendants to answer or otherwise respond to the complaint. ENDORSEMENT: The Application is granted. (Signed by Judge Paul G. Gardephe on 9/20/2011) (ab) (Entered: 09/20/2011)	ViewBatch Download
19	09/08/2011	AFFIDAVIT OF SERVICE. George Anarella served on 8/25/2011, answer due 9/15/2011. Service was accepted by Gregor Georiudis, co-worker. Document filed by Gary Hyde. (Bellin, Eugene) (Entered: 09/08/2011)	ViewBatch Download
18	09/08/2011	AFFIDAVIT OF SERVICE. Constantine Charidemou served on 8/25/2011, answer due 9/15/2011. Service was accepted by Gregor Georiudis, co-worker. Document filed by Gary Hyde. (Bellin, Eugene) (Entered: 09/08/2011)	ViewBatch Download
17	09/08/2011	AFFIDAVIT OF SERVICE. Randy Rose served on 8/25/2011, answer due 9/15/2011. Service was accepted by Gregor Georiudis, co-worker. Document filed by Gary Hyde. (Bellin, Eugene) (Entered: 09/08/2011)	ViewBatch Download
16	09/08/2011	AFFIDAVIT OF SERVICE. Jorge Arancibia served on 8/25/2011, answer due 9/15/2011. Service was accepted by Gregor Georiudis, co-worker. Document filed by Gary Hyde. (Bellin, Eugene) (Entered: 09/08/2011)	ViewBatch Download
15	09/08/2011	AFFIDAVIT OF SERVICE. Michael Denave served on 8/25/2011, answer due	ViewBatch Download

		9/15/2011. Service was accepted by Gregor Georiudis, co-worker. Document filed by Gary Hyde. (Bellin, Eugene) (Entered: 09/08/2011)	
14	09/08/2011	ORDER: It is hereby ORDERED that the fact discovery deadline is extended to December 9, 2011. It is further ORDERED that the Amended Complaint filed with this Court on August 24, 2011 is approved nunc pro tunc. It is further ORDERED that the next status conference in this matter is scheduled for December 1, 2011 at 3:00p.m. (Discovery due by 12/9/2011., Status Conference set for 12/1/2011 at 03:00 PM before Judge Paul G. Gardephe.) (Signed by Judge Paul G. Gardephe on 9/7/2011) (mro) (Entered: 09/08/2011)	ViewBatch Download
13	09/07/2011	Minute Entry for proceedings held before Judge Paul G. Gardephe: Status Conference held on 9/7/2011, (Status Conference set for 12/1/2011 at 03:00 PM in Courtroom 6B, 500 Pearl Street, New York, NY 10007 before Judge Paul G. Gardephe.). (mr) (Entered: 09/07/2011)	
12	08/24/2011	AMENDED COMPLAINT amending 1 Complaint against The City of New York, Michael Denave, Jorge Arancibia, Randy Rose, Constantine Charidemou, George Anarella, Joseph Milazzo with JURY DEMAND.Document filed by Gary Hyde. Related document: 1 Complaint filed by Gary Hyde.(tro) (Entered: 08/26/2011)	ViewBatch Download
	08/24/2011	SUMMONS ISSUED as to George Anarella, Jorge Arancibia, Michael Denave, John Irizarry, Joseph Milazzo, Randy Rose, The City of New York. (tro) (Entered: 08/26/2011)	
11	07/27/2011	NOTICE OF CHANGE OF ADDRESS by Virginia Jackson Nimick on behalf of Gary Hyde, John Irizarry. New Address: New York City Law Department, Office of Corporation Counsel, 100 Church Street, New York, New York, United States 10007, 212-442-2715. (Nimick, Virginia) (Entered: 07/27/2011)	ViewBatch Download

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7	05/25/2011	NOTICE OF INITIAL PRETRIAL CONFERENCE: Initial Conference set fo Tuesday, 6/7/2011 at 02:45 PM in Courtroom 6B, 500 Pearl Street, New York, NY 10007 before Judge Paul G. Gardephe. (Signed by Judge Paul G. Gardephe on 5/23/11) (cd) (Entered: 05/26/2011)	ViewBatch Download
6	04/20/2011	ANSWER to Complaint with JURY DEMAND. Document filed by John Irizarry, The City of New York.(Fett, Baree) (Entered: 04/20/2011)	ViewBatch Download
5	02/09/2011	ENDORSED LETTER addressed to Judge Paul G. Gardephe from Baree N. Fett dated 1/19/2011 re: We respectfully request that defendant City's time to answer or otherwise respond to the complaint be extended to March 18, 2011. ENDORSEMENT: The application is granted. So ordered. The City of New York answer due 3/18/2011. (Signed by Judge Paul G. Gardephe on 2/8/2011) (rjm) (Entered: 02/09/2011)	ViewBatch Download
4	01/19/2011	NOTICE OF APPEARANCE by Baree Nichole Fett on behalf of The City of New York (Fett, Baree) (Entered: 01/19/2011)	ViewBatch Download
3	01/19/2011	AFFIDAVIT OF SERVICE. John Irizarry served on 12/30/2010, answer due 1/20/2011. Service was accepted by Lieutenant Swarm, co-worker. Document filed by Gary Hyde. (Bellin, Eugene) (Entered: 01/19/2011)	ViewBatch Download
2	01/19/2011	AFFIDAVIT OF SERVICE. The City of New York served on 12/28/2010, answer due 1/18/2011. Service was accepted by Dmitriy Aronov, Managing Agent. Document filed by Gary Hyde. (Bellin, Eugene) (Entered: 01/19/2011)	ViewBatch Download
1	12/17/2010	COMPLAINT against John Irizarry, John Doe #1, John Doe #2, John Doe #3, John Doe #4, The City of New York. (Filing Fee \$ 350.00, Receipt Number 923742)Document filed by Gary Hyde.(rdz) (ama). (Entered: 12/21/2010)	ViewBatch Download
	12/17/2010	Case Designated ECF. (rdz) (Entered: 12/21/2010)	

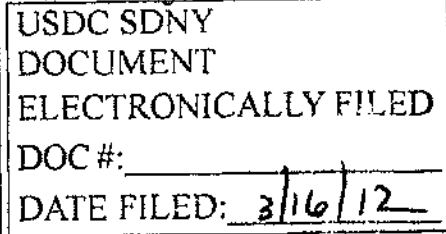
12/17/2010 Magistrate Judge Theodore
H. Katz is so designated. (rdz)
(Entered: 12/21/2010)
12/17/2010 SUMMONS ISSUED as to John
Irizarry, John Doe #1, John Doe
#2, John Doe #3, John Doe
#4, The City of New York. (rdz)
(Entered: 12/21/2010)

End of Document

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General Information

Court	United States District Court for the Southern District of New York; United States District Court for the Southern District of New York
Federal Nature of Suit	Civil Rights - Other[440]
Docket Number	1:10-cv-09407
Status	Closed



UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

----- x
GARY HYDE,

Plaintiff,

-against-

THE CITY OF NEW YORK, JOHN IRIZARRY,
MICHAEL DeNAVE, JORGE ARANCIBIA, RANDY
ROSE, CONSTANTINE CHARIDEMOU, GEORGE
ANARELLA, and JOSEPH MILAZZO,

Defendants.
----- X

**STIPULATION OF
SETTLEMENT AND ORDER
OF DISMISSAL**

10 CV 9407 (PGG) (THK)

WHEREAS, plaintiff, commenced this action by filing a complaint on or about December 17, 2010, and an amended complaint on or about August 24, 2011, alleging that the defendants violated plaintiff's federal civil and state common law rights; and

WHEREAS, defendants have denied any and all liability arising out of plaintiff's allegations; and

WHEREAS, the parties now desire to resolve the issues raised in this litigation, without further proceedings and without admitting any fault or liability; and

WHEREAS, plaintiff has authorized his counsel to agree to the terms set forth below; and

NOW, THEREFORE, IT IS HEREBY STIPULATED AND AGREED, by and between the undersigned, as follows:

1. The above-referenced action is hereby dismissed against defendants, City of New York, John Irizarry, Michael DeNave, Jorge Arancibia, Randy Rose, Constantine Charidemou, George Anarella, and Joseph Milazzo, with prejudice, and without costs, expenses, or attorneys' fees in excess of the amount specified in paragraph "2" below.

2. The City of New York hereby agrees to pay plaintiff Gary Hyde the sum of Thirty-Five Thousand Dollars (\$35,000.00) in full satisfaction of all claims, including claims for costs, expenses and attorneys' fees. In consideration for the payment of this sum, plaintiff agrees to dismissal of all the claims against the defendants City of New York, John Irizarry, Michael DeNave, Jorge Arancibia, Randy Rose, Constantine Charidemou, George Anarella, and Joseph Milazzo, and to release the defendants and any present or former employees and agents of the City of New York or any agency thereof, from any and all liability, claims, or rights of action which were or could have been alleged in this action, including claims for costs, expenses, and attorneys' fees.

3. Plaintiff shall execute and deliver to defendants' attorney all documents necessary to effect this settlement, including, without limitation, General Releases based on the terms of paragraph 2 above and Affidavits of Status of Liens. If Medicare has provided payment and/or benefits for any injury or condition that is the subject of this lawsuit, prior to tendering the requisite documents to effect this settlement, plaintiff shall have notified Medicare and shall submit with the settlement documents a Medicare final demand letter for conditional payments. A Medicare Set-Aside Trust may also be required if future anticipated medical costs are found to be necessary pursuant to 42 U.S.C. §1395y(b) and 42 C.F.R. §§411.22 through 411.26.

4. Nothing contained herein shall be deemed to be an admission by the defendants that they have in any manner or way violated plaintiff's rights, or the rights of any other person or entity, as defined in the constitutions, statutes, ordinances, rules or regulations of the United States, the State of New York, or the City of New York or any other rules, regulations or bylaws of any department or subdivision of the City of New York. This stipulation shall not be admissible in, nor is it related to, any other litigation or settlement negotiations.

5. Nothing contained herein shall be deemed to constitute a policy or practice of the City of New York or any agency thereof.

6. Plaintiff agrees to hold harmless the City of New York regarding any liens or past and/or future Medicare payments, presently known or unknown, in connection with this matter. If conditional and/or future anticipated Medicare payments have not been satisfied, defendants reserve the right to issue a multi-party settlement check, naming Medicare as a payee or to issue a check to Medicare directly based upon Medicare's final demand letter.

7. This Stipulation and Order contains all the terms and conditions agreed upon by the parties hereto, and no oral agreement entered into at any time nor any written agreement entered into prior to the execution of this Stipulation and Order regarding the subject matter of the instant proceeding shall be deemed to exist, or to bind the parties hereto, or to vary the terms and conditions contained herein.

[THE REMAINDER OF THIS PAGE INTENTIONALLY LEFT BLANK]

Dated: New York, New York
February 15, 2012

Eugene M. Bellin, Esq.
Attorney for Plaintiff
233 Broadway
New York, New York 10279
(212) 267-9100

MICHAEL A. CARDOZO
Corporation Counsel of the City of New York
Attorney for Defendants
100 Church Street
New York, New York 10007
(212) 788-0824

By: 
EUGENE M. BELLIN, ESQ.
Attorney for Plaintiff

By: 
VIRGINIA L. NIMICK, ESQ.
Assistant Corporation Counsel

SO ORDERED:


HON. PAUL G. GARDEPHE
UNITED STATES DISTRICT JUDGE

Dated: New York, New York
Mar 15, 2012

This docket is current through 01/05/2018

Current Date: 1/5/2018

Source: U.S. District Court, Southern District of New York (Foley Square)

Court: U.S. District Court, Southern District of New York (Foley Square)
Case Title: Delmoral v. The City of New York et al
Case: 1:11-CV-07950
Judge: Judge Barbara S. Jones
Date Filed: 11/07/2011
Date Closed/Terminated: 09/05/2012
Case Status: CLOSED, 1983-PLAN, CASREF, ECF, MEDT1

CASE INFORMATION

Case Number: 1:11CV07950
Referred To: Magistrate Judge Henry B. Pitman
Jury Demand: Both
Nature of Suit: Civil Rights: Other Civil Rights (440)
Jurisdiction: Federal Question
Cause: 42 USC 1983 Civil Rights Act

PARTICIPANT INFORMATION

Candida Delmoral

Type: Plaintiff
Attorney: Michael L Spiegel
Status: ATTORNEY TO BE NOTICED
Firm Name: The Law Offices of Michael L. Spiegel
Attorney Address: 11 Park Place, Suite 914
New York, NY 10007
Attorney Phone: 212-587-8558
Attorney Fax: 212-658-9480
Email Address: mikespieg@aol.com

The City of New York

Type: Defendant
Attorney: Kimberly Joyce
Status: LEAD ATTORNEY; ATTORNEY TO BE NOTICED
Firm Name: New York City Law Department
Attorney Address: 100 Church Street
Rm. 2-303B
New York, NY 10007
Attorney Phone: 212-356-2650
Attorney Fax: 212-788-9776
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Hailoon Wang

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New York, NY 10007
Attorney Phone: 212-356-2650
Attorney Fax: 212-788-9776
Email Address: ksavino@law.nyc.gov

Randy Rose

Type: Defendant
Attorney: Kimberly Joyce
Status: LEAD ATTORNEY; ATTORNEY TO BE NOTICED
Firm Name: New York City Law Department
Attorney Address: 100 Church Street
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New York, NY 10007
Attorney Phone: 212-356-2650
Attorney Fax: 212-788-9776
Email Address: ksavino@law.nyc.gov

Paul Gaglio

Type: Defendant
Attorney: Kimberly Joyce
Status: LEAD ATTORNEY; ATTORNEY TO BE NOTICED
Firm Name: New York City Law Department
Attorney Address: 100 Church Street
Rm. 2-303B
New York, NY 10007
Attorney Phone: 212-356-2650
Attorney Fax: 212-788-9776
Email Address: ksavino@law.nyc.gov

John Does

Type: Defendant

Jane Does

Type: Defendant

CALENDAR INFORMATION

[View Calendar Information](#)

DOCKET PROCEEDINGS (17)

Entry #:	Date:	Description:	
8	09/05/2012	STIPULATION OF SETTLEMENT AND ORDER OF DISMISSAL: The action is dismissed against defendants, with prejudice, and without costs, expenses, or attorneys' fees in excess of \$30,000.00 in full satisfaction of all claims, including claims for costs, expenses and attorneys' fees. (Signed by Judge Barbara S. Jones on 9/4/2012) (jar) (Entered: 09/05/2012)	ViewBatch Download
	06/05/2012	Mediator Session Held on 06/04/12 at 233 Broadway.(ms) (Entered: 06/05/2012)	
	05/16/2012	MEDIATOR SESSION SCHEDULED First Mediation Session scheduled for 6/4/12, 10:00AM, at 233 Broadway.(ms) (Entered: 05/16/2012)	
	05/15/2012	NOTICE OF MEDIATOR ASSIGNMENT - Notice of assignment of mediator.(ms) (Entered: 05/15/2012)	
	05/01/2012	NOTICE OF SELECTION FOR MEDIATION: This case has been selected for participation in the Southern District of New York's mediation program.(gom) (Entered: 05/01/2012)	
7	01/30/2012	ANSWER to 1 Complaint with JURY DEMAND. Document filed by Paul Gaglio, Randy Rose, The City of New York, Hailoon Wang. (Savino, Kimberly) (Entered: 01/30/2012)	ViewBatch Download
	01/30/2012	Set/Reset Mediation Case Tracking Deadlines: 1983-Plan Review due by 4/30/2012. (gom) (Entered: 01/31/2012)	
6	12/22/2011	ORDER OF REFERENCE TO A MAGISTRATE JUDGE: Order that case be referred to the Clerk of Court for assignment to a Magistrate Judge for General Pretrial (includes scheduling, discovery, non-dispositive pretrial motions, and settlement). Referred to Magistrate Judge Henry B. Pitman. (Signed by Judge Barbara S. Jones on 12/22/2011) (js) (Entered: 12/22/2011)	ViewBatch Download

5	12/08/2011	AFFIDAVIT OF SERVICE. Randy Rose served on 11/29/2011, answer due 12/20/2011; Hailoon Wang served on 11/29/2011, answer due 12/20/2011. Service was accepted by P.O. Vantreis #14994. Service was made by Mail. Document filed by Candida Delmoral. (Spiegel, Michael) (Entered: 12/08/2011)	ViewBatch Download
4	12/08/2011	AFFIDAVIT OF SERVICE. Paul Gaglio served on 11/29/2011, answer due 12/20/2011. Service was accepted by Sgt Cortez #3653. Service was made by Mail. Document filed by Candida Delmoral. (Spiegel, Michael) (Entered: 12/08/2011)	ViewBatch Download
3	11/22/2011	NOTICE OF APPEARANCE by Kimberly Marie Savino on behalf of The City of New York (Savino, Kimberly) (Entered: 11/22/2011)	ViewBatch Download
2	11/14/2011	AFFIDAVIT OF SERVICE. The City of New York served on 11/10/2011, answer due 12/1/2011. Service was accepted by Dmitriy Aronov, Service Window Clerk. Document filed by Candida Delmoral. (Spiegel, Michael) (Entered: 11/14/2011)	ViewBatch Download
	11/09/2011	NOTICE OF PARTICIPATION IN SECTION 1983 PLAN: Unless otherwise ordered, this case shall participate in the Southern District of New York's Plan for Certain Section 1983 Cases against The City of New York (the "Section 1983 Plan"). Please reference the Court's website to review the Section 1983 Plan for important information.(gom) (Entered: 11/09/2011)	
1	11/07/2011	COMPLAINT against Paul Gaglio, Jane Does, John Does, Randy Rose, The City of New York, Hailoon Wang. (Filing Fee \$ 350.00, Receipt Number 465401021133)Document filed by Candida Delmoral.(rdz) (Entered: 11/08/2011)	ViewBatch Download
	11/07/2011	Case Designated ECF. (rdz) (Entered: 11/08/2011)	
	11/07/2011	Magistrate Judge Henry B. Pitman is so designated. (rdz) (Entered: 11/08/2011)	
	11/07/2011	SUMMONS ISSUED as to Paul Gaglio, Jane Does, John Does, Randy Rose, The City of	

New York, Hailoon Wang. (rdz)
(Entered: 11/08/2011)

End of Document

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General Information

Court	United States District Court for the Southern District of New York; United States District Court for the Southern District of New York
Federal Nature of Suit	Civil Rights - Other[440]
Docket Number	1:11-cv-07950
Status	Closed

JONES, J

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

USDC SDNY
DOCUMENT
ELECTRONICALLY FILED
DOC #.
DATE FILED: 09/05/2012

CANDIDA DELMORAL,

Plaintiff,

-against-

THE CITY OF NEW YORK, HAILOON WANG,
RANDY ROSE, PAUL GAGLIO, and JOHN and
JANE DOES,

Defendants.

STIPULATION OF
SETTLEMENT AND ORDER OF
DISMISSAL

11 Civ. 07950 (BSJ)

WHEREAS, plaintiff commenced this action by filing a complaint on or about November 7, 2011, alleging that the defendants violated plaintiff's federal civil and state common law rights; and

WHEREAS, defendants City, Lieutenant Paul Gaglio, Officer Randy Rose and Officer Hailoon Wang have denied any and all liability arising out of plaintiff's allegations; and

WHEREAS, the parties now desire to resolve the issues raised in this litigation, without further proceedings and without admitting any fault or liability; and

WHEREAS, plaintiff has authorized her counsel to settle this matter on the terms set forth below;

NOW, THEREFORE, IT IS HEREBY STIPULATED AND AGREED, by and between the undersigned, as follows:

1. The above-referenced action is hereby dismissed against defendants, with prejudice, and without costs, expenses, or attorneys' fees in excess of the amount specified in paragraph "2" below.

2. Defendant City of New York hereby agrees to pay plaintiff Candida Delmoral the sum of Thirty Thousand (\$30,000.00) Dollars in full satisfaction of all claims, including claims for costs, expenses and attorneys' fees. In consideration for the payment of this sum, plaintiff agrees to dismissal of all the claims against the defendants and to release the defendants and any present or former employees and agents of the City of New York or any entity represented by the Office of the Corporation Counsel, from any and all liability, claims, or rights of action alleging a violation of plaintiff's civil rights, from the beginning of the world to the date of the General Release, including claims for costs, expenses, and attorneys' fees.

3. Plaintiff shall execute and deliver to defendant City of New York's attorney all documents necessary to effect this settlement, including, without limitation, a General Release based on the terms of paragraph 2 above and an Affidavit of Status of Liens. If Medicare has provided payment and/or benefits for any injury or condition that is the subject of this lawsuit, prior to tendering the requisite documents to effect this settlement, plaintiff shall have notified Medicare and shall submit with the settlement documents a Medicare final demand letter for conditional payments. A Medicare Set-Aside Trust may also be required if future anticipated medical costs are found to be necessary pursuant to 42 U.S.C. § 1395y(b) and 42 C.F.R. §§ 411.22 through 411.26.

4. Nothing contained herein shall be deemed to be an admission by the defendants that they have in any manner or way violated plaintiff's rights, or the rights of any other person or entity, as defined in the constitutions, statutes, ordinances, rules or regulations of the United States, the State of New York, or the City of New York or any other rules or regulations of any department or subdivision of the City of New York. This stipulation shall not be admissible in, nor is it related to, any other litigation or settlement negotiations.

5. Nothing contained herein shall be deemed to constitute a policy or practice of the City of New York or any agency thereof.

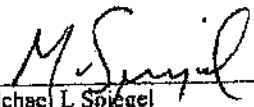
6. Plaintiff agrees to hold harmless defendants regarding any liens or past and/or future Medicare payments, presently known or unknown, in connection with this matter. If conditional and/or future anticipated Medicare payments have not been satisfied, defendants reserve the right to issue a multiparty settlement check naming Medicare as a payee or to issue a check to Medicare directly based upon Medicare's final demand letter.

7. This Stipulation and Order contains all the terms and conditions agreed upon by the parties hereto, and no oral agreement entered into at any time nor any written agreement entered into prior to the execution of this Stipulation and Order regarding the subject matter of the instant proceeding shall be deemed to exist, or to bind the parties hereto, or to vary the terms and conditions contained herein.

Dated: New York, New York
Aug. 21, 2012

MICHAEL L SPIEGEL
Attorney for Plaintiff
111 Broadway, Suite 1305
New York, NY 10006
(212) 587-8558

By:


Michael L. Spiegel
Attorney for Plaintiff

Dated: New York, New York
Sept. 4, 2012

MICHAEL A. CARDOZO
Corporation Counsel of the
City of New York
*Attorney for Defendants City, Gaglio, Rose
and Wang*
100 Church Street, Rm. 3-168
New York, New York 10007

By:


Kimberly Savino
Assistant Corporation Counsel

SO ORDERED:


HON. BARBARA S. JONES
UNITED STATES DISTRICT JUDGE

General Information

Court	United States District Court for the Southern District of New York; United States District Court for the Southern District of New York
Federal Nature of Suit	Civil Rights - Other[440]
Docket Number	1:11-cv-07950
Status	Closed

JUDGE JONES

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

-----X
CANDIDA DELMORAL,)

)
Plaintiff,)

)
-against-)

)
THE CITY OF NEW YORK, HAILOON WANG,)
RANDY ROSE, PAUL GAGLIO,)
and JOHN and JANE DOES,)

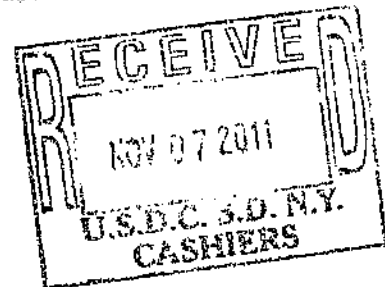
)
Defendants.)
-----X

11 CIV 7950

COMPLAINT

JURY TRIAL DEMANDED

ECF Case



PRELIMINARY STATEMENT

1. This is a civil rights action in which the plaintiff seeks relief for the defendants' violation of rights secured by the Civil Rights Act of 1871, 42 U.S.C. Section 1983, and by the United States Constitution, including its Fourth and Fourteenth Amendments. The plaintiff seeks damages, both compensatory and punitive, affirmative and equitable relief, an award of costs and attorneys' fees, and such other and further relief as this court deems equitable and just.

JURISDICTION

2. This action is brought pursuant to the Constitution of the United States, including its Fourth and Fourteenth Amendments, and pursuant to 42 U.S.C. § 1983. Jurisdiction is conferred upon this court by 42 U.S.C. § 1983, and 28 U.S.C. §§ 1331 and 1343(a)(3) and (4), this being an action seeking redress for the violation of the plaintiff's constitutional and civil rights.

JURY TRIAL DEMANDED

3. Plaintiff demands a trial by jury on each and every one of the claims pleaded

herein.

VENUE

4. Venue is proper for the United States District Court for the Southern District of New York pursuant to 28 U.S.C. § 1391 (a), (b) and (c).

PARTIES

5. Plaintiff CANDIDA DELMORAL is a resident of the City and State of New York.

6. Defendant THE CITY OF NEW YORK is and was at all times relevant herein a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. Defendant THE CITY OF NEW YORK assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risk attaches to the public consumers of the services provided by them.

7. Defendants WANG, ROSE, GAGLIO, and DOES are and were at all times relevant herein duly appointed and acting officers, servants, employees and agents of THE CITY OF NEW YORK and/or the New York City Police Department, a municipal agency of defendant THE CITY OF NEW YORK. The aforementioned defendants are and were at all times relevant herein acting under color of state law in the course and scope of their duties and functions as officers, agents, servants, and employees of defendant THE CITY OF NEW YORK, were acting for, and on behalf of, and with the power and authority vested in them by THE CITY OF NEW YORK, and were otherwise performing and engaging in conduct incidental to the performance of their lawful functions in the course of their duties. The aforementioned

defendants are sued in their individual capacities.

STATEMENT OF RELEVANT FACTS

8. On April 18, 2009, at or about 4:27 a.m., plaintiff DELMORAL was on the sidewalk in the vicinity of 160 East 103rd Street, New York, New York. Plaintiff had just left a family gathering with other family members.

9. Suddenly and without warning, plaintiff was assaulted by defendants WANG, ROSE, GAGLIO, and DOES, thrown to the ground, against a wall, and against a parked automobile.

10. Plaintiff was then placed in handcuffs, arrested, and charged with Assault in the Third Degree. All charges were subsequently dismissed.

FIRST CLAIM

**DEPRIVATION OF RIGHTS UNDER THE
UNITED STATES CONSTITUTION AND 42 U.S.C. §1983**

11. The plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

12. By their conduct and actions in falsely arresting plaintiff DELMORAL, by fabricating evidence against plaintiff, by using excessive force against plaintiff, and by failing to intercede to prevent the complained of conduct, defendants WANG, ROSE, GAGLIO, and DOES, acting under color of law and without lawful justification, intentionally, and/or with a deliberate indifference to or a reckless disregard for the natural and probable consequences of their acts, caused injury and damage in violation of plaintiff's constitutional rights as guaranteed under 42 U.S.C. § 1983 and the United States Constitution, including its Fourth and Fourteenth

Amendments.

13. As a result of the foregoing, plaintiff was deprived of liberty, suffered serious physical injuries, emotional distress, humiliation, costs and expenses, and was otherwise damaged and injured.

SECOND CLAIM

**LIABILITY OF THE CITY OF NEW YORK
FOR CONSTITUTIONAL VIOLATIONS**

14. The plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

15. At all times material to this complaint, defendant THE CITY OF NEW YORK had de facto policies, practices, customs and usages which were a direct and proximate cause of the unconstitutional conduct alleged herein.

16. At all times material to this complaint, defendant THE CITY OF NEW YORK failed to properly train, screen, supervise, or discipline employees and police officers, and failed to inform the individual defendants' supervisors of their need to train, screen, supervise or discipline defendants WANG, ROSE, GAGLIO, and DOES.

17. The policies, practices, customs, and usages, and the failure to properly train, screen, supervise, or discipline, were a direct and proximate cause of the unconstitutional conduct alleged herein, causing injury and damage in violation of plaintiff's constitutional rights as guaranteed under 42 U.S.C. § 1983 and the United States Constitution, including its Fourth and Fourteenth Amendments.

18. As a result of the foregoing, plaintiff was deprived of liberty, suffered serious

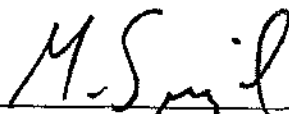
physical injuries, emotional distress, humiliation, costs and expenses, and was otherwise damaged and injured.

WHEREFORE, plaintiff demands the following relief jointly and severally against all of the defendants:

- a. Compensatory damages;
- b. Punitive damages;
- c. The convening and empaneling of a jury to consider the merits of the claims herein;

- d. Pre- and post-judgment costs, interest and attorney's fees;
- e. Such other and further relief as this court may deem appropriate and equitable.

Dated: New York, New York
October 19, 2011



MICHAEL L. SPIEGEL, Esq.
111 Broadway, Suite 1305
New York, New York 10006
(212) 587-8558
Attorney for Plaintiff

This docket is current through 01/05/2018

Current Date: 1/5/2018

Source: U.S. District Court, Southern District of New York (Foley Square)

Court: U.S. District Court, Southern District of New York (Foley Square)
Case Title: Aziz v. The City of New York et al
Case: 1:11-CV-03092
Judge: Judge Shira A. Scheindlin
Date Filed: 05/06/2011
Date Closed/Terminated: 01/03/2012
Case Status: CLOSED, CASREF, ECF

CASE INFORMATION

Case Number: 1:11CV03092
Referred To: Magistrate Judge Gabriel W. Gorenstein (Settlement)
Jury Demand: Both
Nature of Suit: Civil Rights: Other Civil Rights (440)
Jurisdiction: Federal Question
Cause: 42 USC 1983 Civil Rights Act

PARTICIPANT INFORMATION

Abubaker Aziz

Type: Plaintiff
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Attorney: Michael Oliver Hueston
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The City of New York

Type: Defendant
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Attorney: Karl Joseph Ashanti
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Attorney Phone: 212-227-0414
Attorney Fax: 212-788-9776
Email Address: kashanti@law.nyc.gov

Supervisor Police Officer John Doe #1

Type: Defendant

Police Officer Randy Rose

Party Description: Shield No. 13886
Type: Defendant
Attorney: Ilan Goldbard
Status: LEAD ATTORNEY; ATTORNEY TO BE NOTICED
Firm Name: NYC Law Department
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P.O. David

Type: Defendant

P.O. John Does #1-2

Party Description: Individually
Type: Defendant

P.O. John Does #1-2

in their official capacities

Defendant

[View Calendar Information](#)

Entry #: 17 **Date:** 01/17/2012

Date:

01/17/2012

DESCRIPTION
STIPULATION OF SETTLEMENT AND ORDER OF DISMISSAL: All claims brought by plaintiff against defendants are hereby dismissed, with prejudice, and without costs, expenses, or attorneys' fees in excess of the amount specified in paragraph "2" within. (Signed by Judge Shira A. Scheindlin on 1/13/2012) (ab) (Entered: 01/17/2012)

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01/03/2012

ORDER: that the above captioned action be discontinued with prejudice and without costs; provided, however, that within thirty (30) days of the date of this Order, counsel for either side may apply by letter for restoration of the action to the calendar of the undersigned if the settlement is not effected, in which event the action will be restored. The clerk of the court is directed to close this case. (Signed by Judge Shira A. Scheindlin on 1/3/2012) (pl)

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11/28/2011

ENDORSED LETTER addressed to Judge Shira A. Scheindlin from Karl J. Ashanti dated 11/23/2011 re: I write to respectfully submit a joint application for a sixty (60) day enlargement of the current deposition deadline, November 29, 2011, to January 27, 2012. ENDORSEMENT: Request granted. Depositions to be completed by January 27, 2012, and all discovery to be completed by February 13, 2012. The final pretrial conference is adjourned to February, 28 2012 at 4:30. No further adjournments will be granted. So Ordered. Final Pretrial Conference set for

		2/28/2012 at 04:30 PM before Judge Shira A. Scheindlin. Deposition due by 1/27/2012. Discovery due by 2/13/2012. (Signed by Judge Shira A. Scheindlin on 11/28/2011) (rdz) (Entered: 11/28/2011)	
14	11/02/2011	ORDER SCHEDULING SETTLEMENT CONFERENCE: Settlement Conference set for 11/21/2011 at 10:00 AM in Courtroom 17A, 500 Pearl Street, New York, NY 10007 before Magistrate Judge Gabriel W. Gorenstein. (Signed by Magistrate Judge Gabriel W. Gorenstein on 11/2/2011) (djc) (Entered: 11/03/2011)	ViewBatch Download
13	09/29/2011	STIPULATION AND PROTECTIVE ORDER...regarding procedures to be followed that shall govern the handling of confidential material... (Signed by Judge Shira A. Scheindlin on 9/29/2011) (ft) (Entered: 09/29/2011)	ViewBatch Download
12	09/27/2011	ENDORSED LETTER addressed to Magistrate Judge Gabriel W. Gorenstein from Natali J.H. Todd dated 4/13/2011 re: Counsel for the Plaintiff writes to request an adjournment of the settlement conference and of the deadline for the parties' settlement letter submission. ENDORSEMENT: Conference adjourned sine die. Ms. Todd is to report promptly when Mr. Aziz is located. (Signed by Magistrate Judge Gabriel W. Gorenstein on 9/27/2011) (ab) (Main Document 12 replaced on 9/27/2011) (ab). (Entered: 09/27/2011)	ViewBatch Download
11	09/13/2011	NOTICE OF APPEARANCE by Karl Joseph Ashanti on behalf of Randy Rose, The City of New York (Ashanti, Karl) (Entered: 09/13/2011)	ViewBatch Download
10	08/31/2011	ORDER: Settlement Conference set for 10/3/2011 at 02:30 PM in Courtroom 17A, United States Courthouse, 500 Pearl Street, New York, NY 10007 before Magistrate Judge Gabriel W. Gorenstein. (Signed by Magistrate Judge Gabriel W. Gorenstein on 8/31/2011) (laq) (Entered: 08/31/2011)	ViewBatch Download

9	08/15/2011	SCHEDULING ORDER: Defendants P.O. Randy Rose; other police officers whose names have not yet been disclosed; Plaintiff Abubaker Aziz to be deposed by 11/29/11. Production of documents by 9/12/11. Discovery is to be completed by 12/13/11. Plaintiff will supply its pre-trial order matters to the defendant by 12/27/11. Final pre-trial conference by 12/28 at 4:30 p.m. Anticipated length of trial and whether to court or jury; 3-5 days; jury trial. (Signed by Judge Shira A. Scheindlin on 8/12/2011) (jfe) (Entered: 08/15/2011)	ViewBatch Download
8	08/15/2011	ORDER REFERRING CASE TO MAGISTRATE JUDGE. Order that case be referred to the Clerk of Court for assignment to a Magistrate Judge for Settlement. Referred to Magistrate Judge Gabriel W. Gorenstein. ENDORSEMENT: Late September would be best, Thanks. (Signed by Judge Shira A. Scheindlin on 8/12/2011) (laq) (Entered: 08/15/2011)	ViewBatch Download
	08/12/2011	Minute Entry for proceedings held before Judge Shira A. Scheindlin: Initial Pretrial Conference held on 8/12/2011. (ft) (Entered: 08/16/2011)	
7	07/28/2011	ORDER FOR INITIAL PRETRIAL CONFERENCE: Initial Conference set for 8/12/2011 at 04:30 PM in Courtroom 15C, 500 Pearl Street, New York, NY 10007 before Judge Shira A. Scheindlin. (Signed by Judge Shira A. Scheindlin on 7/28/11) (cd) (Entered: 07/28/2011)	ViewBatch Download
6	07/05/2011	ANSWER to 1 Complaint, with JURY DEMAND. Document filed by Randy Rose, The City of New York.(Goldbard, Ilan) (Entered: 07/05/2011)	ViewBatch Download
5	06/14/2011	NOTICE OF APPEARANCE by Michael Oliver Hueston on behalf of Abubaker Aziz (Hueston, Michael) (Entered: 06/14/2011)	ViewBatch Download
4	06/10/2011	ENDORSED LETTER addressed to Judge Shira A. Scheindlin from Ilan Goldbard dated 6/9/2011 re: Requesting an enlargement of time, nunc pro tunc, to July 1,	ViewBatch Download

		2011 within which the City may answer or otherwise respond to the complaint. ENDORSEMENT: The City's request is granted. The City has until July 1, 2011 to answer or otherwise respond to the Complaint. No further extensions will be granted. So Ordered. (Signed by Judge Shira A. Scheindlin on 6/9/2011) (jpo) (Entered: 06/10/2011)	
3	05/27/2011	SUMMONS RETURNED EXECUTED Summons and Complaint, served. Randy Rose served on 5/12/2011, answer due 6/2/2011. Service was accepted by Sgt. Ocasio. Document filed by Abubaker Aziz. (Todd, Natali) (Entered: 05/27/2011)	ViewBatch Download
2	05/27/2011	SUMMONS RETURNED EXECUTED Summons and Complaint, served. The City of New York served on 5/10/2011, answer due 5/31/2011. Service was accepted by Dmitriy Aronov. Document filed by Abubaker Aziz. (Todd, Natali) (Entered: 05/27/2011)	ViewBatch Download
1	05/06/2011	COMPLAINT against P.O. David, P.O. John Does #1-2(in their official capacities), P.O. John Does #1-2(Individually), Randy Rose, Supervisor Police Officer John Doe #1, The City of New York. (Filing Fee \$ 350.00, Receipt Number 5980)Document filed by Abubaker Aziz.(ama) (ama). (Entered: 05/06/2011)	ViewBatch Download
	05/06/2011	Case Designated ECF. (ama) (Entered: 05/06/2011)	
	05/06/2011	Magistrate Judge Gabriel W. Gorenstein is so designated. (ama) (Entered: 05/06/2011)	
	05/06/2011	SUMMONS ISSUED as to P.O. David, P.O. John Does #1-2(in their official capacities), P.O. John Does #1-2(Individually), Randy Rose, Supervisor Police Officer John Doe #1, The City of New York. (ama) (Entered: 05/06/2011)	

End of Document

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General Information

Court	United States District Court for the Southern District of New York; United States District Court for the Southern District of New York
Federal Nature of Suit	Civil Rights - Other[440]
Docket Number	1:11-cv-03092
Status	Closed

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

-----X
ABUBAKER AZIZ,

Plaintiff, **COMPLAINT**

-against-

THE CITY OF NEW YORK; SUPERVISOR POLICE
OFFICER JOHN DOE # 1; P.O. RANDY ROSE, Shield
#13886; P.O. DAVID; P.O. JOHN DOES #1-2; the
individual defendants sued individually and in their official
capacities,

11 CIV 3092(SAS)
ECF Case

Jury Trial Demanded

Defendants.
-----X

PRELIMINARY STATEMENT

1. This is a civil rights action in which plaintiff seeks relief for the violation of his rights secured by 42 U.S.C. § 1983, and the First, Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution. The claims arise from an incident, which occurred on or about December 17, 2009. During the incident the City of New York and members of the New York City Police Department ("NYPD") subjected plaintiff to, among other things, false arrest, excessive force, unlawful search and seizure, unconstitutional conditions of confinement, malicious prosecution, retaliation for free speech, conspiracy, and implementation and continuation of an unlawful municipal policy, practice, and custom. Plaintiff seeks compensatory and punitive damages, declaratory relief, an award of costs and attorney's fees, and such other and further relief as the Court deems just and proper.

JURISDICTION & VENUE

2. This action is brought pursuant to 42 U.S.C. §§ 1983, and the First, Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution. Jurisdiction is conferred upon this Court by the aforesaid statutes and 28 U.S.C. §§ 1331 and 1343.

3. Venue is proper here pursuant to 28 U.S.C. §1391 because some of the acts in question occurred in New York County, and the City of New York is subject to personal jurisdiction in the Southern District of New York.

PARTIES

4. Plaintiff Abubaker Aziz is a resident of the State of New York, Kings County.

5. Defendant City of New York is a municipal corporation organized under the laws of the State of New York, which violated plaintiff's rights as described herein.

6. Defendant Supervisor Police Officer John Doe # 1 is a New York City Police supervisor employed with the 23rd Police Precinct, located in New York, New York who violated plaintiff's rights as described herein.

7. Defendant P.O. Randy Rose is a New York City Police Officer employed with the 23rd Police Precinct, in New York, New York who violated plaintiff's rights as described herein.

8. Defendant Police Officer David is a New York City Police Officer employed with the 23rd Police Precinct, located in New York, New York who violated plaintiff's rights as described herein.

9. Defendant Police Officer John Does # 1-2 are New York City Police Officers employed with the 23rd Police Precinct, located in New York, New York who violated plaintiff's rights as described herein.

10. The individual defendants are sued in their individual and official capacities.

STATEMENT OF FACTS

11. On December 17, 2009 at approximately 3:45 p.m. in the vicinity of 1634 Lexington Avenue, and E. 103rd Street, New York, New York, defendants Supervisor P.O. John Doe # 1, P.O. Randy Rose, P.O. David and P.O. John Does # 1-2, at times acting in concert and at times acting independently, committed the following illegal acts against plaintiff.

12. Plaintiff was standing outside next to 1634 Lexington Avenue when several police officers arrived in police vehicles and proceeded to enter 1634 Lexington Avenue. As P.O. Rose exited one of the police cars, he approached plaintiff and ordered Plaintiff to put his hands up and turn around. As Plaintiff complied, he was forcefully was spun around by P.O. Rose who immediately placed his elbow against Plaintiff's back while he applied pressure to plaintiff's back. Another officer (P.O. John Doe #1) stood on the other side of plaintiff and placed his elbow against Plaintiff's neck while also applying pressure. Plaintiff was immediately handcuffed. As Plaintiff cried out in pain and began to scream from the pressure to his neck and the tight handcuffs, he was then spun around and then spun around again, facing the glass wall, while P.O. Rose placed his arm at the back of Plaintiff's neck and pushed Plaintiff's face and body against the glass wall of restaurant diner. Plaintiff's face being pushed against the restaurant diner while pressure was being applied to the back of his head and neck by P.O. Rose's elbow placed at the back of Plaintiff's neck.

13. As Plaintiff was being held against the wall, P.O. John Doe #2 placed his hands in Plaintiff's pockets and emptied it of its contents, while P.O. Rose ran his hands all over Plaintiff's body, grabbing plaintiff's crotch, moving his hands up and down plaintiff's inner thighs, while at the same time, forcing plaintiff's face against the wall of the restaurant diner. No contraband was found in Plaintiff. Plaintiff continued to cry aloud for help. P.O. Rose and P.O. John Doe #1 eventually removed their elbows from the back of plaintiff's neck after a crowd had gathered and began yelling "police brutality" and "stop". During the time that Plaintiff was crying aloud for help, Plaintiff was repeatedly told to "shut the fuck up" and slapped in the head several times by P.O. Rose and P.O. John Doe #1.

14. Plaintiff was then yanked off the ground by P.O. Rose who was holding his pants legs and P.O. John Doe #1 holding him by the neck of his clothing and threw him into the back of a waiting police van, causing his body to hit the closed door on the other side of the van. Plaintiff remained in handcuffs in the back of this police vehicle for approximately ten minutes. During this time, Plaintiff's cousin had exited 1634 Lexington Avenue in response to Plaintiff's screams and Plaintiff observed his cousin being dragged back inside 1634 Lexington Avenue.

15. After sitting inside the back of the police van for approximately ten minutes while the police dragged his cousin back inside 1634 Lexington Avenue, Plaintiff was grabbed by the legs of his pants and dragged out by his feet by P.O. David holding his feet and P.O. John Doe #2 holding the neck of his clothing, Plaintiff was thrown into the back of a waiting police car. As Plaintiff was dragged out of the police van, his back grazed against the bottom frame of the van. As Plaintiff was thrown into the car, Plaintiff struck his head against the side of the car.

16. P.O. Rose, P.O. David, P.O. John Doe #1 and P.O. John Doe #2 approached Plaintiff who was merely standing outside of 1634 Lexington Avenue, and without reasonable suspicion or probable cause, ordered Plaintiff to turn around and put his hands up as he was handcuffed, searched, slapped in the head and pushed his face and body against the glass wall while applying pressure with their elbows against his back and neck without cause.

17. Once plaintiff was confronted, he was not free to disregard the defendants' orders, walk away or leave the scene.

18. Plaintiff complied with this illegal order, and P.O. John Doe #2 reached into plaintiff's pockets and removed the contents of his pockets.

19. During the search of plaintiff's pockets by P.O. John Doe #2, P.O. John Doe #1, P.O. Rose, P.O. David and Supervisor John Doe #1, told Plaintiff to "shut the fuck up" as he complained about the arrest, their elbows against his back and the back of his neck and the excessively tight handcuffs. By the time plaintiff was escorted to a waiting police van and subsequently a waiting police car, Supervisor P.O. John Doe # 1, P.O. John Doe #1-2, and P.O. Rose, and P.O. David had participated in the slapping of plaintiff, as well as the search and seizure of plaintiff without reasonable suspicion or probable cause, by handcuffing plaintiff and removing personal property from plaintiff's pockets.

20. Defendants found no items on plaintiff's person that justified plaintiff's arrest.

21. Thereafter, defendants Supervisor P.O. John Doe # 1, P.O. John Doe #1-2, P.O. Rose, P.O. David, without consent, an arrest warrant, a lawful search warrant, probable cause, or reasonable suspicion that plaintiff (or any third person) had committed a crime, falsely arrested plaintiff.

22. During the arrest of plaintiff, defendants Supervisor P.O. John Doe # 1, P.O. John Doe #1-2, P.O. David and P.O. Rose committed excessive force against plaintiff, by maliciously, gratuitously, and unnecessarily twisting plaintiff's arms, placing their elbows on plaintiff's back and neck as they pushed plaintiff's face and body against the glass wall, slapping plaintiff in the head and placing excessively tight handcuffs on plaintiff's wrists. When plaintiff inquired as to why he was being arrested, he was told to "shut the fuck up".

23. When plaintiff complained of defendants' misconduct and the tightness of the handcuffs, the loss of feeling in his hands, the loss of feeling in his fingers and wrists, his fingers turning blue, the pain in his neck, face and head, in retaliation of his free speech, without justification or cause, the defendants ignored plaintiff's calls for assistance. Those defendants who did not touch plaintiff witnessed these unlawful acts and failed to intervene and protect plaintiff.

24. Plaintiff arrived at the 23rd Precinct and was made to stand with the excessively tight handcuffs on his wrists while they processed other arrestees. After approximately half-an-hour, the handcuffs were removed and Plaintiff was placed in an overcrowded cell until about 11:00 p.m. when he was transported to Central Booking.

25. While inside the cell at the 23rd Precinct, plaintiff was subjected to depraved, filthy, and inhumane conditions of confinement, including temperatures in the extremes, filthy floors and a cell that smelled of urine and vomit. Plaintiff asserts that at the 23rd Precinct cell, he was made to stand in the overcrowded cell for many hours because there were too many people; there were arrestees lying on every inch of the floor space, sitting on the bench, lying underneath the bench and standing against the wall. The conditions of the cell were severe and inhumane.

26. Plaintiff's repeated requests for water or food and bathroom was ignored or told to "shut up and wait." Though Plaintiff arrived at the 23rd Precinct before 4:15 p.m. on December 17, 2009, he was not transported to Central Booking until approximately 11:00 p.m. on the night of December 17, 2009. Plaintiff was deprived of food, water and the use of a phone during the entire time at the 23rd Precinct, and deprived of the use of a bathroom for more than an hour while at the 23rd Precinct.

27. Those defendants who heard plaintiff's complaints and observed this situation, failed to intervene and assist plaintiff.

28. The officers at the Precinct looked the other way at these dangerous conditions, and ignored plaintiff who sought their assistance.

29. Defendant Supervisor P.O. John Doe # 1 supervised P.O. Rose and P.O. David, participated in the above-detailed unlawful conduct, including approving plaintiff's false arrest.

30. While plaintiff was incarcerated at the 23rd Precinct being processed for a later arraignment, the defendants Supervisor P.O. John Doe # 1 supervised P.O. Rose, P.O. David and P.O. John Does # 1-3, pursuant to a conspiracy, falsely and maliciously told the New York County District Attorney's Office that plaintiff had committed a crime, and based on the officer's false allegations, the District Attorney's Office decided to prosecute plaintiff in New York County Criminal Court.

31. Defendants intentionally, knowingly and purposely provided false statements and information to cause plaintiff to be prosecuted, to cover up that they seized plaintiff without probable cause or reasonable suspicion.

32. Defendants acted with malice by initiating the above-stated malicious prosecutions, to cover up that they stopped plaintiff without probable cause or reasonable suspicion.

33. Defendants lacked probable cause to believe the above-stated malicious prosecutions could succeed.

34. The above-stated malicious prosecution caused a sufficient post-arraignment liberty restraint on plaintiff.

35. Plaintiff was transported from the 23rd Precinct while chained together with approximately 15 other arrestees. The handcuffs were extremely tight and being chained together, made it difficult to sit in the police caravan and plaintiff was made to stand in the caravan while being driven to Central Booking. This created a very dangerous situation with people bumping into each other as the caravan drove. Plaintiff's complaint to the officer driving the caravan was ignored.

36. Upon arrival at Central Booking sometime before midnight on the morning of December 17, 2009, Plaintiff was advised that he had missed dinner. Plaintiff was given no food or water during the entire time he was held at Central Booking until approximately 7:00 a.m. on the morning of December 18, 2009. Plaintiff was in custody since 3:45 p.m. on December 17, 2009 and remained at Central Booking up until approximately sometime in the evening of December 18, 2009 when he was arraigned in Criminal Court on December 18, 2009. At Central Booking, plaintiff's handcuffs were finally removed.

37. Plaintiff's Central Booking jail cells were infested with, among other things, rodents and roaches. Moreover, there was human and nonhuman waste on the floor and one single toilet that did not work that numerous arrestees in a cell were forced to share without

privacy. The toilet was clogged and overflowed onto the floor. Toilet paper and bedding were nonexistent. There was no access to clean drinking water. Temperatures were in the extremes. The walls of the cell were dilapidated. The guards and personnel assigned to Central Booking looked the other way at these dangerous conditions, and ignored arrestees who sought his assistance including a request for food and water.

38. Plaintiff did not engage in any obstruction of governmental administration, did not resist arrest or committed any assaultive behavior, or committed any crimes to warrant his arrest during the above stated incidents.

39. Plaintiff did not engage in suspicious, unlawful or criminal activity prior to or during the above stated incidents.

40. The individual defendants did not observe plaintiff engaged in suspicious, unlawful, or criminal conduct at any time prior to or during the above stated incidents.

41. At no time prior to or during the above stated incidents were the individual defendants provided with information or were in receipt of a credible or an objectively reasonable complaint from a third person that plaintiff had engaged in suspicious, unlawful or criminal conduct.

42. The aforesaid events were not isolated incidents. Defendants City of New York and P.O. Supervisor John Doe # 1 have been aware (from lawsuits, notices of claim and complaints filed with the Civilian Complaint Review Board) that many of the NYPD's and officers are insufficiently trained on the proper basis to make an arrest, investigate incidents, and how to treat innocent and/or uninvolved individuals. City of New York and P.O. Supervisor John Doe # 1 are further aware that such improper training has often resulted in a deprivation of civil rights. Despite such notice, City of New York and P.O. Supervisor John Doe # 1 have

failed to take corrective action. This failure caused the officers and counselors in the present case to violate the plaintiff's civil rights.

43. Moreover, City of New York and P.O. Supervisor John Doe # 1 were aware prior to the incidents that the defendant officers lacked the objectivity, temperament, maturity, discretion, and disposition to be employed as officers. Despite such notice, City of New York and P.O. Supervisor John Doe # 1 have retained these officers, and failed to adequately train and supervise them.

44. As a result of defendants' actions, plaintiff experienced personal and physical injuries (including swollen wrists, bruises, and contusions) fear, embarrassment, humiliation, an invasion of privacy, pain and suffering, damage to reputation, loss of income and emotional distress.

45. After several court appearances, the charge against plaintiff was dismissed, ending in a favorable termination.

46. The individual defendants acted in concert committing these illegal acts against plaintiff.

FEDERAL CLAIMS AGAINST THE INDIVIDUAL DEFENDANTS

47. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

48. The conduct of defendant officers, as described herein, amounted to false arrest, excessive force, unlawful search and seizure, unconstitutional conditions of confinement, malicious prosecution, retaliation for free speech, conspiracy, and implementation and continuation of an unlawful municipal policy, practice, and custom.

49. The conduct of the defendant officers, as described herein, violated plaintiff's rights under 42 U.S.C. §§ 1983, the First, Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution, by committing false arrest, excessive force, unlawful search and seizure, unconstitutional conditions of confinement, malicious prosecution, retaliation for free speech, conspiracy, and implementation and continuation of an unlawful municipal policy, practice, and custom.

50. Defendants acted under pretense and color of state law and their individual and official capacities and within the scope of their employment. Said acts by said defendants were beyond the scope of their jurisdiction, without authority or law, and in abuse of their powers, and said defendants acted willfully, knowingly, and with the specific intent to deprive plaintiff of his rights secured by 42 U.S.C. § 1983, the Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution.

51. As a direct and proximate result of the misconduct and abuse detailed above, plaintiff experienced personal and physical injuries, pain and suffering, fear, an invasion of privacy, psychological pain, emotional distress, mental anguish, embarrassment, humiliation, and financial loss.

52. The plaintiff is also entitled to receive punitive damages because defendants' actions were motivated by extreme recklessness and indifference to the plaintiff's rights.

**FEDERAL CLAIMS AGAINST THE CITY OF
NEW YORK**

53. Plaintiff repeats and re-alleges all the foregoing paragraphs as if the same were fully set forth at length herein.

54. The City of New York directly caused the constitutional violations suffered by plaintiff.

55. Upon information and belief, the City of New York was aware from notices of claim, lawsuits, complaints, and from NYPD's own observations, that the officers involved in the present case were unfit to be officers, and that it was highly likely that they would commit the acts alleged in the present case.

56. Nevertheless, the City of New York exercised deliberate indifference by failing to take remedial action. The City of New York failed to properly train, retrain, supervise, discipline, monitor, and improperly utilized and retained these officers. Moreover, the City of New York failed to adequately investigate prior complaints against the officers and created a culture where officers can harass, and violate individuals without consequence. Indeed, when individuals file complaints against officers, the City has a practice of failing to substantiate or address the complaint, even under circumstances where the complaint is corroborated and credible, and the account given by the officer is unworthy of belief.

57. The aforesaid conduct by the City of New York violated plaintiff's rights under 42 U.S.C. § 1983; the First, Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution.

58. Moreover, the aforesaid conduct by the City of New York amounted to negligent hiring, training, monitoring and retention of incompetent employees.

59. As a direct and proximate result of the City of New York's misconduct and abuse detailed above, plaintiff experienced personal and physical injuries, pain and suffering, fear, psychological pain, emotional distress, mental anguish, embarrassment, humiliation, and financial loss.

WHEREFORE, plaintiff demands a jury trial and the following relief jointly and severally against the defendants:

- a. Compensatory damages in an amount to be determined by a jury;
- b. Punitive damages in an amount to be determined by a jury;
- c. Costs, interest and attorney's fees;
- d. Such other and further relief as this Court may deem just and proper,
including injunctive and declaratory relief.

DATED: Brooklyn, New York
May 5, 2011

NATALI J.H. TODD, ESQ.
Attorney for Plaintiff
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Brooklyn, New York 11201
(718) 797-3055
natali_todd@yahoo.com
By:

/S/
NATALI J.H. TODD, ESQ.

This docket is current through 01/05/2018

Current Date: 1/5/2018

Source: U.S. District Court, Southern District of New York (Foley Square)

Court: U.S. District Court, Southern District of New York (Foley Square)
Case Title: Timmons v. The City Of New York , et al
Case: 1:14-CV-06511
Judge: Judge William H. Pauley, III
Date Filed: 08/14/2014
Date Closed/Terminated: 03/27/2015
Case Status: CLOSED, 1983-PLAN, ECF, MEDTFR1

CASE INFORMATION

Case Number: 1:14CV06511
Jury Demand: Both
Nature of Suit: Civil Rights: Other Civil Rights (440)
Jurisdiction: Federal Question
Cause: 42 USC 1983 Prisoner Civil Rights

PARTICIPANT INFORMATION

Michael Timmons

Type: Plaintiff
Attorney: Stanislaw A. German
Status: LEAD ATTORNEY; ATTORNEY TO BE NOTICED
Firm Name: Law Office of Stanislaw A. German
Attorney Address: 233 Broadway, Suite 2370
New York, NY 10279
Attorney Phone: 212-986-6776
Attorney Fax: 212-986-6250
Email Address: SGerman@sgcounselors.com

The City Of New York ,

Type: Defendant
Attorney: Jennifer Lilly Koduru
Status: LEAD ATTORNEY; ATTORNEY TO BE NOTICED
Firm Name: NYC Law Department, Special Federal Litigation
Attorney Address: 100 Church Street
New York, NY 10007
Attorney Phone: 212-442-2359
Attorney Fax: 212-788-9776
Email Address: jkoduru@law.nyc.gov

Police Officer Quinton Vanwynen

Party Description: both individually
Type: Defendant

Attorney: Jennifer Lilly Koduru
Status: LEAD ATTORNEY; ATTORNEY TO BE NOTICED
Firm Name: NYC Law Department, Special Federal Litigation
Attorney Address: 100 Church Street
New York, NY 10007
Attorney Phone: 212-442-2359
Attorney Fax: 212-788-9776
Email Address: jkoduru@law.nyc.gov

Police Officer Quinton Vanwynen

Party Description: as members of the New York City Police Department
Type: Defendant

Police Officer Randy Rose

Party Description: both individually
Type: Defendant
Attorney: Jennifer Lilly Koduru
Status: LEAD ATTORNEY; ATTORNEY TO BE NOTICED
Firm Name: NYC Law Department, Special Federal Litigation
Attorney Address: 100 Church Street
New York, NY 10007
Attorney Phone: 212-442-2359
Attorney Fax: 212-788-9776
Email Address: jkoduru@law.nyc.gov

Police Officer Randy Rose

Party Description: as members of the New York City Police Department
Type: Defendant

CALENDAR INFORMATION

[View Calendar Information](#)

DOCKET PROCEEDINGS (24)

Entry #: 12
Date: 03/27/2015

Description:
ORDER: It having been reported to this Court that this action has been or will be settled, it is hereby ORDERED that this action is discontinued without costs to any party, and without prejudice to restoring the action to this Court's calendar if the application to restore the action is made within thirty days of the date of this Order. The Clerk of Court is directed to terminate all motions pending and mark this case closed. (Signed by [ViewBatch Download](#))

		Judge William H. Pauley, III on 3/27/2015) (kgo) (Entered: 03/27/2015)	
	03/23/2015	Mediator Session Held on 03/20/2015 at 40 Foley Square. (ms) (Entered: 03/23/2015)	
	03/19/2015	MEDIATOR SESSION SCHEDULED First Mediation Session scheduled for 3/20/15, 11:30 AM at 40 Foley Square Courthouse (Centre Street).(ms) (Entered: 03/19/2015)	
	03/09/2015	MEDIATOR SESSION NOT HELD Mediator Session scheduled for 03/06/2015 at 40 Foley Square was NOT held.(ms) (Entered: 03/09/2015)	
	02/23/2015	MEDIATOR SESSION SCHEDULED First Mediation Session scheduled for 3/6/15, 11:30 AM at 40 Foley Square Courthouse (Centre Street).(ms) (Entered: 02/23/2015)	
	02/23/2015	MEDIATOR SESSION NOT HELD Mediator Session scheduled for 02/20/2015 at 40 Foley Square was NOT held.(ms) (Entered: 02/23/2015)	
	01/30/2015	MEDIATOR SESSION SCHEDULED First Mediation Session scheduled for 2/20/15, 10:30 AM at 40 Foley Square Courthouse (Centre Street).(ms) (Entered: 01/30/2015)	
10	11/21/2014	SCHEDULING ORDER: Discovery due by 2/27/2015. Final Pretrial Conference set for 4/10/2015 at 10:00 AM before Judge William H. Pauley III. Pretrial Order due by 3/27/2015. (Signed by Judge William H. Pauley, III on 11/21/2014) (lmb) (Entered: 11/21/2014)	ViewBatch Download
	11/12/2014	NOTICE OF MEDIATOR ASSIGNMENT - Notice of assignment of mediator.(ms) (Entered: 11/12/2014)	
9	11/07/2014	ANSWER to 1 Complaint, with JURY DEMAND. Document filed by Randy Rose(both individually), The City Of New York,, Quinton Vanwynen(both individually). (Koduru, Jennifer) (Entered: 11/07/2014)	ViewBatch Download
	11/07/2014	NOTICE OF SELECTION FOR MEDIATION: This case has been selected for participation in the Southern District of New York's	

	11/07/2014	mediation program.(rpr) (Entered: 11/10/2014) SECTION 1983 PLAN 100-DAY REVIEW: The mediator shall be available to the parties throughout the discovery phase of the Plan and shall schedule and hold the first mediation session in the case within ten (10) days of the close of the discovery period. In the event that the mediation cannot begin within the time set forth herein, the assigned mediator shall promptly notify the Mediation Supervisor of the date by which the mediation will begin and the reason for the delay. The mediator shall correspond with the Mediation Office to arrange a mutually convenient date and time to hold the first session. 1983-Plan Review due by 2/17/2015. Mediator to be Assigned by 11/17/2014.(rpr) (Entered: 11/10/2014)	
8	10/16/2014	AFFIDAVIT OF SERVICE. Randy Rose(both individually) served on 9/1/2014, answer due 9/22/2014; Randy Rose(as members of the New York City Police Department) served on 9/1/2014, answer due 9/22/2014. Service was accepted by Sgt. Perkins, Shield No. 4984. Document filed by Michael Timmons. (German, Stanisla0) (Entered: 10/16/2014)	ViewBatch Download
7	10/16/2014	AFFIDAVIT OF SERVICE. Quinton Vanwynen(both individually) served on 8/27/2014, answer due 9/17/2014; Quinton Vanwynen(as members of the New York City Police Department) served on 8/27/2014, answer due 9/17/2014. Service was accepted by Sgt. Danclar. Document filed by Michael Timmons. (German, Stanisla0) (Entered: 10/16/2014)	ViewBatch Download
6	10/16/2014	AFFIDAVIT OF SERVICE. The City Of New York, served on 8/19/2014, answer due 11/9/2014. Service was accepted by Ms. B. Mazyak, Legal Clerk. Document filed by The City Of New York,. (German, Stanisla0) (Entered: 10/16/2014)	ViewBatch Download

5	09/12/2014	ORDER FOR INITIAL PRETRIAL CONFERENCE: This action has been assigned to District Judge William H. Pauley III for all purposes. Counsel are directed to appear in Courtroom 20B at the Daniel Patrick Moynihan United States Courthouse, 500 Pearl Street, New York, New York on November 21, 2014 at 12:00 p.m. for an initial pretrial conference with the Court for the purpose of discussing settlement, exploring contemplated motions, stipulating facts, narrowing issues, fixing a discovery schedule, and setting a date for trial. If you are proceeding pro se (without an attorney), you are required to appear personally at this conference, and as further set forth herein. Initial Conference set for 11/21/2014 at 12:00 PM in Courtroom 20B, 500 Pearl Street, New York, NY 10007 before Judge William H. Pauley III. (Signed by Judge William H. Pauley, III on 9/12/2014) (ja) (Entered: 09/15/2014)	ViewBatch Download
4	09/11/2014	ORDER granting 3 Letter Motion for Extension of Time to Answer re 3 LETTER MOTION for Extension of Time to File Answer addressed to Judge William H. Pauley, III from Jennifer L. Koduru dated September 9, 2014. Application granted. SO ORDERED. The City Of New York, answer due 11/9/2014. (Signed by Judge William H. Pauley, III on 9/11/2014) (ja) (Entered: 09/12/2014)	ViewBatch Download
3	09/09/2014	LETTER MOTION for Extension of Time to File Answer addressed to Judge William H. Pauley, III from Jennifer L. Koduru dated September 9, 2014. Document filed by The City Of New York,, (Koduru, Jennifer) (Entered: 09/09/2014)	ViewBatch Download
2	08/14/2014	CIVIL COVER SHEET filed. (moh) (Entered: 08/18/2014)	ViewBatch Download
1	08/14/2014	COMPLAINT against Randy Rose(both individually), Randy Rose(as members of the New York City Police Department), The City Of New York,, Quinton	ViewBatch Download

08/14/2014 Vanwynen(both individually),
Quinton Vanwynen(as members
of the New York City Police
Department). (Filing Fee \$
350.00, Receipt Number
465401102434)Document filed
by Michael Timmons.(moh)
(Entered: 08/18/2014)
08/14/2014 NOTICE OF PARTICIPATION IN
SECTION 1983 PLAN: Unless
otherwise ordered, this case
shall participate in the Southern
District of New York's Plan for
Certain Section 1983 Cases
against The City of New York
(the "Section 1983 Plan"). Please
reference the Court's website,
www.nysd.uscourts.gov, to
review the Section 1983 Plan,
updated 1/2/2014, for important
information.(rpr) (Entered:
08/19/2014)
08/14/2014 Case Designated ECF. (moh)
(Entered: 08/18/2014)
08/14/2014 Magistrate Judge Ronald L. Ellis
is so designated. (moh) (Entered:
08/18/2014)
08/14/2014 SUMMONS ISSUED as to Randy
Rose(both individually), Randy
Rose(as members of the New
York City Police Department),
The City Of New York,, Quinton
Vanwynen(both individually),
Quinton Vanwynen(as members
of the New York City Police
Department). (moh) (Entered:
08/18/2014)

End of Document

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UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

USDC SDNY
DOCUMENT
ELECTRONICALLY FILED
DOC #:
DATE FILED: 3/27/15

-----X
MICHAEL TIMMONS

Plaintiff,

14cv6511

-against-

ORDER

THE CITY OF NEW YORK, *et al.*,

Defendants.
-----X

WILLIAM H. PAULEY III, District Judge:

It having been reported to this Court that this action has been or will be settled, it is hereby ORDERED that this action is discontinued without costs to any party, and without prejudice to restoring the action to this Court's calendar if the application to restore the action is made within thirty days of the date of this Order. The Clerk of Court is directed to terminate all motions pending and mark this case closed.

Dated: March 27, 2015
New York, New York

SO ORDERED:


WILLIAM H. PAULEY III
U.S.D.J.

All counsel of record.

General Information

Court	United States District Court for the Southern District of New York; United States District Court for the Southern District of New York
Federal Nature of Suit	Civil Rights - Other[440]
Docket Number	1:14-cv-06511
Status	Closed

General Information

Court	United States District Court for the Southern District of New York; United States District Court for the Southern District of New York
Federal Nature of Suit	Civil Rights - Other[440]
Docket Number	1:14-cv-06511
Status	Closed

JUDGE PAULEY

14 CV

6511

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

MICHAEL TIMMONS,

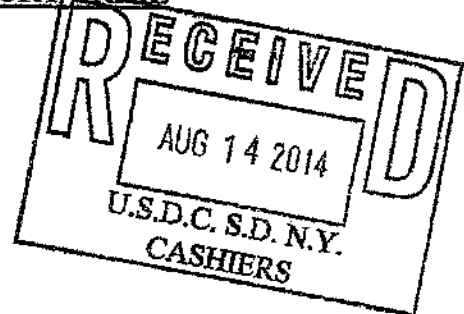
Plaintiff,

-against-

THE CITY OF NEW YORK, and Police
Officer Quinton Vanwynen and Police
Officer Randy Rose, both individually and
as members of the New York City Police
Department.

Defendants.

**COMPLAINT
AND DEMAND FOR
JURY TRIAL**



Plaintiff, MICHAEL TIMMONS, by his attorney, STANISLAO A. GERMÁN,
complaining of the defendants, respectfully alleges as follows:

PRELIMINARY STATEMENT

1. Plaintiff brings this action for compensatory damages, punitive damages and attorney's fees pursuant to 42 U.S.C. §§ 1983, 1988, for the wrongful acts of Defendants THE CITY OF NEW YORK and Police Officers Quinton Vanwynen and Randy Rose of the New York City Police Department, all acting under color of state law and pursuant to their authority, in violation of Plaintiff's rights, as said rights are secured by said statutes and the Constitutions of the State of New York and the United States.

JURISDICTION

2. This action is brought pursuant to 42 U.S.C. §§ 1983, 1988, and the Fourth, Fifth, Eighth and Fourteenth Amendments to the United States Constitution, and the constitutional, statutory and common laws of the State of New York.

3. Jurisdiction is invoked herein pursuant to the aforementioned statutory and constitutional provisions and pursuant to 28 U.S.C. §§ 1331, 1343, this being an action seeking redress for the violation of Plaintiff's constitutional and civil rights.

VENUE

4. Venue is properly laid in this District under 28 U.S.C. § 1391(b), this being the District in which the claim arose.

TRIAL BY JURY

5. Plaintiff demands a trial by jury on each and every one of his claims as pled herein.

PARTIES

6. At all times relevant hereto, Plaintiff was and is a resident of Bronx County in the State of New York, in the Southern District of New York, of African-American heritage.

7. At all times relevant hereto, Defendant THE CITY OF NEW YORK (hereinafter, "NYC") is a municipality of the State of New York and owns, operates, manages, directs and controls the New York City Police Department, which employs the other named Defendants.

8. Defendants Police Officer Quinton Vanwynen and Police Officer Randy Rose, are and were at all times relevant to this action, police officers employed by the New York City Police Department (hereinafter, "NYPD"), and acting under color of state law. They are being sued in both their individual and official capacity.

9. At all times relevant hereto and in all their actions described herein, the Defendants were acting under color of the statutes, ordinances, regulations, policies, customs and usages of the NYPD and NYC, pursuant to their authority as employees, servants and

agents of the NYPD within the scope of employment and incidental to their otherwise lawful duties and functions as employees, servants, agents and police officers.

10. NYC was responsible for the hiring, training, supervision, discipline, retention and promotion of the police officers, sergeants, and/or employees of the NYPD.

FACTS

11. On January 7th, 2011, at approximately 10:30 a.m. Mr. Timmons was walking along 110th Street and Lexington Avenue in Manhattan when he was approached by two uniformed officers in a yellow cab.

12. At the time, Mr. Timmons had just finished working and was speaking with some co-workers when he was questioned by the officers regarding the contents of his bag.

13. One of Mr. Timmons' co-workers substantiated that they were simply finishing work and they continue to walk along the sidewalk.

14. The officers continue to harass Mr. Timmons when they suddenly exit the vehicle, handcuff Mr. Timmons and thrown him to the ground.

15. Mr. Timmons' hat was over his eyes and he could not see but one of the officers placed their knees on his back and behind his head.

16. Mr. Timmons was then lifted up and slammed on the trunk of the car and his face struck the corner of the car.

17. As a result of the officers' actions, his face swelled-up and he received a scar below his right eye.

18. While at the scene a second police unit arrived with two female officers who indicated to him "it's not us."

19. Mr. Timmons was held in custody for approximately 24 hours.

20. When Mr. Timmons appeared before the New York City Criminal Court he was arraigned on the false charges of disorderly conduct and resisting arrest.
21. At his arraignment Mr. Timmons was released on his own recognizance without bail.
22. After his arraignment, Mr. Timmons went to North Central Hospital in Bronx County for his injuries.
23. Over the course of the ensuing six months, Mr. Timmons returned to court and refused all efforts to plea bargain his case.
24. The case went to trial where both Mr. Timmons and the police officers testified.
25. The presiding Judge did not find the officers testimony credible and on August 18th, 2011, Mr. Timmons was found not guilty of all charges.

**FIRST CLAIM FOR RELIEF:
DEPRIVATION OF FEDERAL CIVIL RIGHTS**

26. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs 1 through 25 with the same force and effect as if fully set forth herein.
27. All of the aforementioned acts of Defendants, their agents, servants and employees were carried out under color of state law.
28. All of the aforementioned acts deprived Plaintiff, Michael Timmons, of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth, Fifth, Eighth and Fourteenth Amendments to the Constitution of the United States and in violation of 42 U.S.C. § 1983.
29. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers, with all the actual and/or apparent authority attendant thereto.

30. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and rules of NYC and the NYPD, all under the supervision of ranking officers of said department.

31. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of his/her respective municipality/authority, which is forbidden by the Constitution of the United States.

32. By these actions, these Defendants have deprived Plaintiff of rights secured by the Fourth, Fifth, Eighth and Fourteenth Amendments to the United States Constitution, in violation of 42 U.S.C. § 1983, for which the Defendants are individually liable.

**SECOND CLAIM FOR RELIEF:
CONSPIRACY TO VIOLATE CIVIL RIGHTS**

33. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs 1 through 32 with the same force and effect as if fully set forth herein.

34. All of the aforementioned Defendants conspired to violate Plaintiff's civil rights by agreeing among themselves to falsely charge Plaintiff with crimes and testify falsely, as described above, in violation of 42 U.S.C. § 1985, for which the Defendants are individually liable.

**THIRD CLAIM FOR RELIEF:
FALSE ARREST/FALSE IMPRISONMENT UNDER 42 U.S.C. § 1983**

35. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs 1 through 34 with the same force and effect as if fully set forth herein.

36. As a result of Defendants' aforementioned conduct, Plaintiff, Michael Timmons, was subject to an illegal, improper and false arrest by the Defendants and taken into custody and caused to be falsely imprisoned, detained, confined, incarcerated and prosecuted by the Defendants in criminal proceedings, without any probable cause, privilege or consent.

37. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, and he was put in fear for his safety and subjected to handcuffing, and other physical restraints, without probable cause.

38. As a result of his false arrest, Plaintiff was subjected to humiliation, ridicule and disgrace. Plaintiff was discredited in the minds of many members of the community.

**FOURTH CLAIM FOR RELIEF:
MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983**

39. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs 1 through 38 with the same force and effect as if fully set forth herein.

40. Defendants were directly and actively involved in the initiation of criminal proceedings against Plaintiff.

41. Defendants lacked probable cause to initiate criminal proceedings against Plaintiff.

42. Defendants acted with malice in initiating criminal proceedings against Plaintiff.

43. Defendants were directly and actively involved in the continuation of criminal proceedings against Plaintiff.

44. Defendants lacked probable cause to continue criminal proceedings against Plaintiff.

45. Defendants acted with malice in continuing criminal proceedings against Plaintiff.

46. The criminal proceedings were terminated in Plaintiff's favor on or about August 18th, 2014, when the charges against him were dismissed and sealed.

**FIFTH CLAIM FOR RELIEF:
ASSAULT UNDER 42 U.S.C. § 1983**

47. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs 1 through 46 with the same force and effect as if fully set forth herein.

48. The degree of force used by Defendants was excessive, unreasonable and unwarranted.

49. Defendants' actions were intentional, willful, malicious, egregious, grossly reckless and negligent, unconscionable and unprovoked.

50. As a result of the excessive force and brutality, Plaintiff sustained substantial pain and bruising and swelling about his body.

51. All of the aforementioned acts of Defendants constituted negligence under the laws of the State of New York and they are liable for said damage.

**SIXTH CLAIM FOR RELIEF:
MUNICIPAL LIABILITY**

52. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs 1 through 51 with the same force and effect as if fully set forth herein.

53. Defendant Police Officer Quinton Vanwynen and Police Officer Randy Rose, arrested Michael Timmons despite a complete lack of evidence against him, notwithstanding their knowledge that said arrest would jeopardize Plaintiff's liberty, well-being, safety and constitutional rights.

54. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers and officials, with all the actual and/or apparent authority attendant thereto.

55. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers and officials pursuant to the customs, policies, usages, practices, procedures and rules of NYC and the NYPD, all under the supervision of ranking officers of said department.

56. The aforementioned customs, policies, usages, practices, procedures and rules of NYC and the NYPD included, but were not limited to, initiating and continuing criminal proceedings without evidence of criminal activity.

57. The foregoing customs, policies, usages, practices, procedures and rules of NYC and the NYPD constituted a deliberate indifference to the safety, well-being and constitutional rights of Plaintiff.

58. The foregoing customs, policies, usages, practices, procedures and rules of NYC and the NYPD were the direct and proximate cause of the constitutional violations suffered by Plaintiff as alleged herein.

59. The foregoing customs, policies, usages, practices, procedures and rules of NYC and the NYPD were the moving force behind the constitutional violation suffered by Plaintiff as alleged herein.

60. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the constitutional rights of Plaintiff Michael Timmons.

61. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of Plaintiff's constitutional rights.

62. Defendant NYC, as municipal policymaker in the training and supervision of Defendant police officers, have pursued a policy and custom of deliberate indifference to the rights of persons in their domain who suffer violation of their right to freedom from the use of excessive and unreasonable force and freedom from deprivation of Liberty without Due Process of law in violation of the Fourth, Fifth, and Fourteenth Amendments to the Constitution of the United States and 42 U.S.C. § 1983, and the Constitution and laws of the State of New York.

63. All of the foregoing acts by Defendants deprived Plaintiff Michael Timmons of federally protected rights, including, but not limited to, the right:

- a. Not to be deprived of liberty without due process of law;
- b. To be free from seizure and arrest not based upon probable cause;
- c. To be free from unlawful imprisonment;
- d. To be free from unwarranted and malicious criminal prosecution;
- e. To be free from intentional assault and infliction of emotional distress;
- f. Not to have cruel and unusual punishment imposed upon him; and
- g. To receive equal protection under the law.

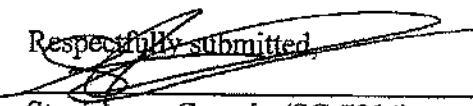
PRAYER FOR RELIEF

WHEREFORE, Plaintiff demands judgment and prays for the following relief, jointly and severally, against the Defendants:

1. Special and compensatory damages in the amount of TWO HUNDRED AND FIFTY THOUSAND (\$250,000.00) DOLLARS.
2. Punitive damages in the amount of TWO-HUNDRED AND FIFTY THOUSAND (\$250,000.00) DOLLARS.

3. Reasonable attorney's fees and costs; and
4. Such other and further relief as this Court seems just and proper.

DATED: New York, New York
August 14, 2014


Respectfully submitted,

Stanislao a. Germán (SG 7914)
Attorney for Plaintiff
233 Broadway, Suite 2370
New York, New York 10279
(212) 986-6776
SGerman@SGcounselors.com

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

MICHAEL TIMMONS,

Plaintiff

-against-

THE CITY OF NEW YORK, and Police Officer
QUINTON VANWYNEN, Shield #18259,
Police Officer RANDY ROSE, Shield #13886 and
Police Officers "JOHN DOE" #1-4,
(the name "John Doe" being fictitious as the
true names are presently unknown), both
individually and as members of the New York
Police Department.

Defendant.

COMPLAINT AND DEMAND FOR JURY TRIAL

Law Office of Stanislaw A. German
Stan A. German, Esq.
233 Broadway, Suite 2370
New York, New York 10279
(212) 986-6776

General Information

Court	United States District Court for the Southern District of New York; United States District Court for the Southern District of New York
Federal Nature of Suit	Civil Rights - Other[440]
Docket Number	1:14-cv-06511
Status	Closed

This docket is current through 01/05/2018

Current Date: 1/5/2018

Source: U.S. District Court, Southern District of New York (Foley Square)

Court: U.S. District Court, Southern District of New York (Foley Square)
Case Title: Ruiz v. The City of New York et al
Case: 1:10-CV-05158
Judge: Judge John G. Koelll
Date Filed: 07/06/2010
Date Closed/Terminated: 11/01/2010
Case Status: CLOSED, ECF

CASE INFORMATION

Case Number: 1:10CV05158
Jury Demand: Both
Demand: \$1,000,000
Nature of Suit: Civil Rights: Other Civil Rights (440)
Jurisdiction: Federal Question
Cause: 42 USC 1983 Civil Rights Act

PARTICIPANT INFORMATION

Alfred Ruiz, Jr.

Type: Plaintiff
Attorney: Steven Alan Hoffner
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Attorney Phone: 212-941-8330
Attorney Fax: 212-941-8137
Email Address: sahoffner@aol.com

The City of New York

Type: Defendant
Attorney: Ryan Glenn Shaffer
Status: LEAD ATTORNEY; ATTORNEY TO BE NOTICED
Firm Name: New York City Law Department
Attorney Address: 100 Church Street
New York, NY 10007
Attorney Phone: 212-788-1041
Attorney Fax: 212-788-9776
Email Address: rshaffer@law.nyc.gov

N.Y.C.Police Officer Randy Rose

Party Description:	Shield # 13886, Individually
Type:	Defendant
Attorney:	Ryan Glenn Shaffer
Status:	LEAD ATTORNEY; ATTORNEY TO BE NOTICED
Firm Name:	New York City Law Department
Attorney Address:	100 Church Street New York, NY 10007
Attorney Phone:	212-788-1041
Attorney Fax:	212-788-9776
Email Address:	rshaffer@law.nyc.gov

N.Y.C. Police Officer Randy Rose

Party Description:	Shield # 13886, in his official capacity
Type:	Defendant
Attorney:	Ryan Glenn Shaffer
Status:	LEAD ATTORNEY; ATTORNEY TO BE NOTICED
Firm Name:	New York City Law Department
Attorney Address:	100 Church Street New York, NY 10007
Attorney Phone:	212-788-1041
Attorney Fax:	212-788-9776
Email Address:	rshaffer@law.nyc.gov

N.Y.C. Police Officer Constant Charidemou

Party Description:	Shield # 27883, Individually
Type:	Defendant
Attorney:	Ryan Glenn Shaffer
Status:	LEAD ATTORNEY; ATTORNEY TO BE NOTICED
Firm Name:	New York City Law Department
Attorney Address:	100 Church Street New York, NY 10007
Attorney Phone:	212-788-1041
Attorney Fax:	212-788-9776
Email Address:	rshaffer@law.nyc.gov

N.Y.C. Police Officer Constant Charidemou

Party Description:	Shield # 27883, In his official capacity
Type:	Defendant
Attorney:	Ryan Glenn Shaffer
Status:	LEAD ATTORNEY; ATTORNEY TO BE NOTICED
Firm Name:	New York City Law Department
Attorney Address:	100 Church Street New York, NY 10007
Attorney Phone:	212-788-1041
Attorney Fax:	212-788-9776
Email Address:	rshaffer@law.nyc.gov

CALENDAR INFORMATION

[View Calendar Information](#)

DOCKET PROCEEDINGS (11)

Entry #:	Date:	Description:	
8	11/01/2010	STIPULATION OF SETTLEMENT AND ORDER OF DISMISSAL. The above-referenced action is hereby dismissed against defendants, with prejudice, and without costs, expenses, or attorney's fees in excess of the amount, specified in paragraph "2" below. The City of New York hereby agrees to pay plaintiff Alfred Ruiz Jr. the sum of Fifteen Thousand (\$15,000) Dollars in full satisfaction of all claims, including claims for costs, expenses and attorney's fees. In consideration for the payment of this sum, plaintiff agrees to dismissal of all the claims against the defendants and to release the defendant, the City of New York, and any present or former employees and agents of the City of New York or any agency thereof, from any and all liability, claims, or rights of action which were or could have been alleged in this action, including claims for costs, expenses, and attorney's fees. (Signed by Judge John G. Koeltl on 11/1/10) (djc) Modified on 11/3/2010 (djc). (Entered: 11/01/2010)	ViewBatch Download
7	09/30/2010	ANSWER to Complaint with JURY DEMAND. Document filed by Constant Charidemou(Shield # 27883, Individually), Constant Charidemou(Shield # 27883, In his official capacity), Randy Rose(Shield # 13886, Individually), Randy Rose(Shield # 13886, in his official capacity), The City of New York.(Shaffer, Ryan) (Entered: 09/30/2010)	ViewBatch Download
6	09/13/2010	CIVIL SCHEDULING ORDER: Dispositive motions to be completed by 2/4/11. Joinder of Parties due by 11/5/2010. Motions in limine due by 2/25/2011. Discovery due by 1/14/2011. Pretrial Order due by 2/25/2011. Ready for	ViewBatch Download

		Trial by 3/4/2011. So Ordered (Signed by Judge John G. Koeltl on 9/8/2010) (js) (Entered: 09/14/2010)	
5	08/20/2010	AFFIDAVIT OF SERVICE. Randy Rose(Shield # 13886, in his official capacity) served on 8/11/2010, answer due 9/1/2010. Service was accepted by Rios, #29879. Document filed by Alfred Ruiz, Jr. (Hoffner, Steven) (Entered: 08/20/2010)	ViewBatch Download
4	08/20/2010	AFFIDAVIT OF SERVICE. Constant Charidemou(Shield # 27883, Individually) served on 8/11/2010, answer due 9/1/2010. Service was accepted by Rios, #29879. Document filed by Alfred Ruiz, Jr. (Hoffner, Steven) (Entered: 08/20/2010)	ViewBatch Download
3	08/19/2010	NOTICE of Hearing: Pretrial Conference set for 9/8/2010 at 04:30 PM in Courtroom 12B, 500 Pearl Street, New York, NY 10007 before Judge John G. Koeltl. (cd) (Entered: 08/19/2010)	ViewBatch Download
2	08/12/2010	ENDORSED LETTER addressed to Judge John G. Koeltl from Rayn G. Shaffer dated 8/11/2010 re: I write to respectfully request an extension of defendant City's time to answer or otherwise respond to the complaint from August 11, 2010, until October 11, 2010. ENDORSEMENT: The application is granted. SO ORDERED., The City of New York answer due 10/11/2010. (Signed by Judge Laura Taylor Swain on 8/11/2010 for Judge Koeltl) (jmi) Modified on 8/12/2010 (jmi). (Entered: 08/12/2010)	ViewBatch Download
1	07/06/2010	COMPLAINT against The City of New York, Randy Rose(Shield # 13886, Individually), Randy Rose(Shield # 13886, in his official capacity), Constant Charidemou(Shield # 27883, Individually), Constant Charidemou(Shield # 27883, In his official capacity). (Filing Fee \$ 350.00, Receipt Number 908075)Document filed by Alfred Ruiz, Jr.(ama) (ama). (Entered: 07/06/2010)	ViewBatch Download
	07/06/2010	Case Designated ECF. (ama) (Entered: 07/06/2010)	

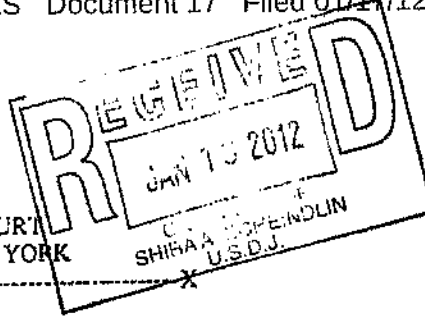
07/06/2010 Magistrate Judge Frank Maas is
so designated. (ama) (Entered:
07/06/2010)
07/06/2010 SUMMONS ISSUED as
to The City of New York,
Randy Rose(Shield # 13886,
Individually), Randy Rose(Shield
13886, in his official capacity),
Constant Charidemou(Shield #
27883, Individually), Constant
Charidemou(Shield # 27883,
In his official capacity). (ama)
(Entered: 07/06/2010)

End of Document

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Scheinblin

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK



ABUBAKER AZIZ,

Plaintiff,

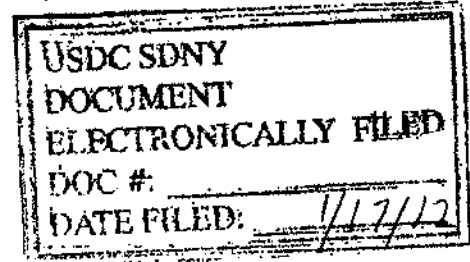
**STIPULATION OF
SETTLEMENT AND ORDER OF
DISMISSAL**

-against-

11 CV 3092 (SAS)(OWG)

THE CITY OF NEW YORK; SUPERVISOR
POLICE OFFICER JOHN DOE #1; P.O. RANDY
ROSE, Shield #13886; P.O. DAVID; P.O. JOHN
DOES #1-2; the individual defendants sued
individually and in their official capacities.

Defendants,



WHEREAS, plaintiff commenced this action by filing a complaint on or about May 6, 2011, alleging that the defendants violated plaintiff's federal civil and state common law rights; and

WHEREAS, defendants have denied any and all liability arising out of plaintiff's allegations; and

WHEREAS, defendants served plaintiff with a Rule 68 Offer of Judgment on or about December 6, 2011; and

WHEREAS, plaintiff accepted defendants' Rule 68 Offer of Judgment on December 14, 2011; and

WHEREAS, the parties now desire to resolve the issues raised in this litigation, without further proceedings and without admitting any fault or liability;

NOW, THEREFORE, IT IS HEREBY STIPULATED AND AGREED, by and between the undersigned, as follows:

1. All claims brought by plaintiff against defendants are hereby dismissed, with prejudice, and without costs, expenses, or attorneys' fees in excess of the amount specified in paragraph "2" below.

2. The City of New York hereby agrees to pay plaintiff Abubaker Aziz the sum of TEN THOUSAND AND ONE (\$10,001.00) DOLLARS ~~in full satisfaction of all claims, plus reasonable attorneys' fees, expenses and costs to the date of defendant City of New York's Rule 68 offer of judgment payable to the law office of Natali J.H. Todd, P.C. and Michael O. Hueston, Attorney at Law, in full satisfaction of all including claims for costs, expenses and attorneys' fees.~~ In consideration for the payment of this ~~claims.~~

sum, plaintiff agrees to dismissal of all the claims against the defendants and to release the defendants City of New York and Randy Rose, and any present or former employees and agents of the City of New York or any entity represented by the Office of the Corporation Counsel, from any and all liability, claims, or rights of action alleging a violation of my civil rights, from the beginning of the world to the date of the General Release. Plaintiff has assigned his rights to attorneys' fees, expenses and costs to his attorneys, the Law Office of Natali J.H. Todd P.C. and Michael O. Hueston, Attorney at Law. 1/4/12 MH.

3. In consideration of the payment specified in paragraph "2" and the assignment of plaintiff's rights to attorneys' fees, expenses and costs to his attorneys, the Law Office of Natali J.H. Todd P.C. and Michael O. Hueston, Attorney at Law, plaintiff and his attorneys, the Law Office of Natali J.H. Todd P.C. and Michael O. Hueston, Attorney at Law, hereby agree to waive any claim of post-judgment interest.

4. Counsel for plaintiff and defendants will attempt to resolve in good faith any claims for reasonable attorney's fees, expenses and costs by stipulation under separate cover and payment for those sums will be made directly to plaintiff's counsel.

5. Plaintiff shall execute and deliver to defendants' attorney all documents necessary to effect this settlement, including, without limitation, a General Release based on the terms of paragraph 2 above and an Affidavit of Status of Liens. If Medicare has provided

tendering the requisite documents to effect this settlement, plaintiff shall have notified Medicare and shall submit with the settlement documents a Medicare final demand letter for conditional payments. A Medicare Set-Aside Trust may also be required if future anticipated medical costs are found to be necessary pursuant to 42 U.S.C. §1395y(b) and 42 C.F.R. §§411.22 through 411.26.

6. Nothing contained herein shall be deemed to be an admission by the defendants that it in any manner or way violated plaintiff's rights, or the rights of any other person or entity, as defined in the constitutions, statutes, ordinances, rules or regulations of the United States, the State of New York, or the City of New York or any other rules, regulations or bylaws of any department or subdivision of the City of New York. This stipulation shall not be admissible in, nor is it related to, any other litigation or settlement negotiations.

7. Nothing contained herein shall be deemed to constitute a policy or practice of the City of New York or any agency thereof.

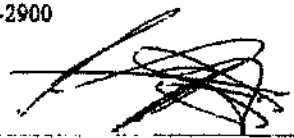
8. Plaintiff agrees to hold harmless the City of New York regarding any liens or past and/or future Medicare payments, presently known or unknown in connection with this matter. If conditional and/or future anticipated Medicare payments have not been satisfied, defendants reserve the right to issue a multiparty settlement check, naming Medicare as a payee or to issue a check to Medicare directly based upon Medicare's final demand letter.

9. This Stipulation and Order contains all the terms and conditions agreed upon by the parties hereto, and no oral agreement entered into at any time nor any written

agreement entered into prior to the execution of this Stipulation and Order regarding the subject matter of the instant proceeding shall be deemed to exist, or to bind the parties hereto, or to vary the terms and conditions contained herein.

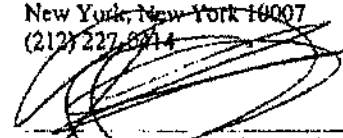
Dated: New York / New York
January 12, 2012

Michael Oliver Hueston, Attorney at Law
Attorney for plaintiff
350 Fifth Avenue, Suite 4810
Empire State Building
New York, NY 10118
(212) 643-2900

By: 

MICHAEL O. HUESTON, OAH
Attorney for Plaintiff

MICHAEL A. CARDOZO
Corporation Counsel of the
City of New York
Attorney for Defendants
100 Church Street, Rm. 3-199
New York, New York 10007
(212) 227-6714

By: 

KARL J. ASHANTI (KA4547)
Assistant Corporation Counsel

Dated: New York, New York
January 13, 2012

SO ORDERED:


HON. SHIRA A. SCHEINDLIN
UNITED STATES DISTRICT JUDGE

General Information

Court	United States District Court for the Southern District of New York; United States District Court for the Southern District of New York
Federal Nature of Suit	Civil Rights - Other[440]
Docket Number	1:11-cv-07950
Status	Closed

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK: PART TAP B

In the Matter

Of

Joshua Roldan

CERTIFICATE

An Application by CYRUS R. VANCE, JR., District Attorney, New York County, to secure the attendance before the Supreme Court of the State of New York, County of New York, of witnesses from without the State of New York pursuant to a subpoena duces tecum issued in accordance with Article 640 of the Criminal Procedure Law of the State of New York.

Upon reading the annexed affirmation of Atalanta C. Mihas, Assistant District Attorney of the County of New York, sworn to March 2, 2018 and due consideration having been given hereto,

I, Curtis Farber, a Justice of the Supreme Court of the State of New York, County of New York, a court of record of general criminal jurisdiction,

DO HEREBY CERTIFY, pursuant to Article 640 of the Criminal Procedure Law of the State of New York, as follows:

FIRST: A trial in a criminal matter entitled "People v. Joshua Roldan," Indictment Number 01947/2016 is to commence before the Supreme Court of the State of New York on March 12, 2018.

SECOND: Records and documents from Instagram LLC, Inc. have already been obtained by the office of the District Attorney of New York County pursuant to previous subpoenas and search warrants and a Custodian of Records from Instagram LLC, Inc. is sought to be compelled by the attached subpoena, because both the above mentioned

documents and a Custodian of Records from Instagram LLC, Inc., whose corporate headquarters are located at 1601 Willow Road Menlo Park, CA 94025 are material to the presentation of this criminal matter.

THIRD: A Custodian of Records from Instagram LLC, Inc. is a necessary and material witness in said proceeding because the District Attorney of New York County will be introducing into evidence records and documents that have been previously acquired by subpoena and search warrant. The testimony of said Custodian of Records is material to the presentation of this case before the aforementioned Supreme Court to testify so that person can testify to the business record keeping of Instagram LLC, Inc. and testify to the authenticity of the records provided by Instagram LLC, Inc. pursuant to subpoenas and search warrants served upon Instagram LLC, Inc. by the New York County District Attorney's Office.

FOURTH: The testimony of said Custodian of Records will be required for a period of no more than one (1) day.

FIFTH: The State of New York has, by Section 640.10 of the Criminal Procedure Law of the State of New York, made provision for commanding persons within its borders to testify in proceedings in any state which, by its laws, has made provision for commanding persons within that state to attach and testify in criminal proceedings in the State of New York.

SIXTH: The laws of the State of New York will give to said Custodian of Records, while in the State of New York pursuant to any subpoena or order to testify as set forth in the attached subpoena duces tecum, protection from arrest and service of civil and criminal process in connection with any matter which arose before his entrance into New York under any such subpoena.

SEVENTH: All expenses as well as witness fees required under the Uniform Act will

be paid by the New York County District Attorney's Office.

AND I DO THEREFORE REQUEST AND RECOMMEND that an appropriate Judge of the State of California issue an order directing that a Custodian of Records from Instagram LLC, Inc. be compelled to appear in and before the Supreme Court of the County and State of New York pursuant to the attached subpoena and that the aforementioned Custodian of Records from Instagram LLC, Inc. appear at the time and place set forth in the attached subpoena duces tecum, or at any mutually convenient time as may be agreed to between the Office of the District Attorney, New York County, and the witness.

Justice of the Supreme Court
State of New York

Supreme Court of the State of New York,
County of New York, this ____ day of March 2018.

General Information

Court	United States District Court for the Southern District of New York; United States District Court for the Southern District of New York
Federal Nature of Suit	Civil Rights - Other[440]
Docket Number	1:10-cv-05158
Status	Closed

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

-----X 10 CV 5158 (JGK)

ALFRED RUIZ, JR.,

Plaintiff,

-against-

VERIFIED
COMPLAINT
AND DEMAND FOR
A JURY TRIAL

THE CITY OF NEW YORK, N.Y.C.
POLICE OFFICER RANDY ROSE,
SHIELD # 13886, AND N.Y.C. POLICE
OFFICER CONSTANT CHARIDEMOU,
SHIELD # 27883, EACH SUED
INDIVIDUALLY AND IN HIS
OFFICIAL CAPACITY,

Defendants.

-----X

1. This is an action for compensatory and punitive damages for violation of Plaintiff's civil rights under the Fourth, Fifth, Eighth and Fourteenth Amendments to the Constitution of the United States by reason of the unlawful acts of defendants.

JURISDICTION

2. This action is brought pursuant to 42 U.S.C. § 1983. Jurisdiction is founded upon 28 U.S.C. § 1343. Venue is proper in this district under 28 U.S.C. § 1391(b) in that all claims arose in this district.

PARTIES

3. Plaintiff Alfred Ruiz, Jr. is a resident of New York City, New York County, State of New York.

4. At all times hereinafter mentioned, the Defendant New York City Police officers were employees of the defendants and was acting within the scope and authority of their employment. They are sued individually and in their official capacities as New York City Police Officers.

5. At all times, the defendant New York City owned and maintained the New York City Police Department ("NYPD") and employed the individual defendants sued herein.

6. Upon information and belief, the NYPD was responsible for training its officers.

7. That at all times herein the defendant, City, was negligent in the hiring, training, supervision, discipline, retention and promotion of the agents, servants and/or employees of the police department.

8. That at all times mentioned herein the defendant, City of New York knew or should have known of the discriminatory nature, bad judgment, and unlawful propensities of the officers involved in the violation of civil rights and intentional infliction of emotional distress of the plaintiff.

FACTS

9. On or about September 24, 2009, at approximately 2:00 A.M., plaintiff was with his friends in the vicinity of 113th Street and 1st Avenue, in Manhattan.

10. At this time, plaintiff was crossing the street, joking around with his friends, and his hands were at his waist, holding up his pants because his belt buckle had broken.

11. After plaintiff crossed the street, Officer Rose grabbed plaintiff, threw him against a fence and arrested him for disorderly conduct.

12. The officer also accused plaintiff of resisting arrest by twisting his body and flailing his arms during the arrest.

13. Plaintiff was not physically injured during his initial arrest.

14. A few hours later, at the precinct, plaintiff was told to take off some religious beads that he had on his neck.

15. Plaintiff told the officers that they were "blessed". The officer proceeded to throw the beads on the ground.

16. Upset, plaintiff called the officer a "asshole".

17. The officer removed plaintiff from the holding cell and took him to the back of

the room and punched plaintiff in the face a number of times.

18. Plaintiff sustained cuts and bruises to his face from this assault.

19. As a result of this violation of his civil rights, Plaintiff suffered various physical and psychological injuries.

20. Plaintiff pled guilty to disorderly conduct.

21. Defendant City has pursued a policy and custom of deliberate indifference to the rights of persons in its domain, including the Plaintiff, in its procedures for supervising and removing, when appropriate, unstable and violent officers from their duties, including but not limited to the fact that the defendants knew or should have known of the individual Defendant's tendencies to use unlawful physical force, unlawful seizures, use excessive force, and otherwise commit unlawful acts, but took no steps to correct or prevent the exercise of such tendencies.

22. Defendants knew or should have known that prior to this date, the perpetration of unlawful acts, and the use of excessive force and the infliction of injury to persons in the custody of the individual defendants was occurring, in that there may have been reports of such unlawful conduct by this specific officer, but failed to take appropriate steps to eliminate such unlawful acts.

23. Defendant, among other deficiencies, failed to institute a bona fide procedure in which defendant investigated the unlawful acts of the individual defendants or properly investigated reports of their alleged misconduct.

AS AND FOR A FIRST CAUSE OF ACTION
(EXCESSIVE FORCE)

24. Plaintiff reiterates and realleges the facts stated in paragraphs 1-23 as if stated fully herein.

25. As a result of their actions, Defendants, acting under "Color of law", deprived Plaintiff of his right to freedom from the use of excessive force without due process of law in violation of the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United

States and 42 U.S.C. § 1983.

26. Defendants subjected Plaintiff to these deprivations of his rights either maliciously or by acting with a reckless disregard for whether Plaintiff's rights would be violated by his actions.

27. These Defendant officers either actively participated in the excessive force or were present and improperly failed to intervene to prevent other officers from using excessive force although they were in a position to do so.

28. As a result of the aforesaid occurrence, Plaintiff suffered the damages and injuries aforesaid. All Defendants are liable for said damage and injuries.

AS AND FOR ASECOND CAUSE OF ACTION
(MONELL VIOLATION)

29. Plaintiff reiterates and realleges the facts stated in paragraphs 1-28 as if stated fully herein.

30. Defendant City and N.Y.P.D., through The N.Y.C. Police Commissioner, as a municipal policymaker, in the hiring, training and supervision of the Defendant officers, have pursued a policy and custom of deliberate indifference to the rights of persons in their domain, and Plaintiffs, violating Plaintiffs' rights to freedom from deprivation of liberty without due process of law in violation of the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States and 42 U.S.C. 1983.

31. As a direct and proximate result of the aforementioned policy and custom of deliberate indifference of Defendants City and N.Y.P.D., Defendant officers committed the unlawful acts referred to above. Thus, Defendant City is liable for Plaintiffs injuries.

PRAYER FOR RELIEF

WHEREFORE, plaintiff prays that this Court:

1. Enter a judgment that defendants, by their actions, violated Plaintiff's rights under state law, and violated Plaintiff's rights under the Fourth, Fifth, Eighth and Fourteenth Amendments to the Constitution of the United States, 42 USC Sec. 1983 and 42 USC Sec. 1985, and violated Plaintiff's rights under State law; and,

2. Enter a judgment, jointly and severally, against defendants Holder and "John Doe" for compensatory damages in the amount of One Million (\$1,000,000.00) Dollars; and,

3. Enter a judgment, jointly and severally against Defendants Holder and "John Doe" for punitive damages in the amount of Three Million (\$3,000,000.00) Dollars; and,

4. Enter an Order:

a) Awarding plaintiff's reasonable attorney's fees and litigation expenses pursuant to 42 U.S.C. § 1988;

b) Granting such other and further relief which to the Court seems just and proper.

DEMAND FOR JURY TRIAL

Plaintiff hereby demands a trial by jury.

Dated: New York, New York
June 16, 2010

RESPECTFULLY,

STEVEN A. HOFFNER, ESQ.
Attorney for the Plaintiff
325 Broadway, Suite 505
New York, New York 10007
(212) 941-8330
(SH-0585)

VERIFICATION

STEVEN A. HOFFNER, an attorney admitted to practice in the Courts of the State of New York states:

That the affirmant is the attorney of record for the plaintiff in the within action.

That the affirmant has read the foregoing Complaint and knows the contents thereof.

That the same is true as to affirmant's knowledge, except as to matters therein alleged to be on information and belief, and as to those matters affirmant believes them to be true.

That the reason this verification is made by affirmant is because the plaintiff does not reside in the county wherein affirmant maintains his office.

That the grounds of my belief as to all matters not stated upon my own knowledge are as follows:

investigation, client conferences, and review of the file.

The undersigned affirms that the following statements are true, under the penalties of perjury.

Dated: New York, New York
June 16, 2010

STEVEN A. HOFFNER, Esq.
(SH-0585)

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

-----X

ALFRED RUIZ, JR.,

Plaintiff,

-against-

VERIFIED
COMPLAINT
AND DEMAND FOR
A JURY TRIAL

THE CITY OF NEW YORK, N.Y.C.
POLICE OFFICER RANDY ROSE,
SHIELD # 13886, AND N.Y.C. POLICE
OFFICER CONSTANT CHARIDEMOU,
SHIELD # 27883, EACH SUED
INDIVIDUALLY AND IN HIS
OFFICIAL CAPACITY,

Defendants.

-----X

Steven Hoffner, Esq.
325 Broadway, Suite 505
New York, New York 10007

General Information

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